

THIRTEEN DAYS

BY

JEANNETTE MARKS

AUTHOR OF "GENIUS AND DISASTER"



ALBERT & CHARLES BONI
New York : : 1929

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DAYS ***

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THIRTEEN DAYS

CHAPTER I

THE END

“Oh, few faint voices bravely asking ‘Why?’
You pass like whispers in the roaring play
Of madmen marching to a holiday.
We know. We know, why bound to death they lie.”

DAVID P. BERENBERG. [\[1\]](#)

There in the newspapers on that morning of August ninth, 1927, was the appeal from the Sacco-Vanzetti Defense Committee to the “rank and file” of artists, authors, teachers (including college professors) and other kinds of professional men and women to come to headquarters in Boston. How many of the rank and file of professors and authors like myself would be there? For me, behind, lay seven years of a working friendship with the Committee.

That noon of August ninth on the shore of Lake Champlain a budge-budge-not struggle went on for more than an hour. If I went, what could I do? Would I not be merely one more person under foot? At such moments were there not always many to go? Had I not—as had so many others with more influence—done what I could over the seven long years to help the Committee in its great work of educating the public to see that the issue was justice to these two Italians, one a shoe worker, the other a fish peddler! And now that the work seemed, one way or another, really over, why go?

But would there be many of my kind? Had not the report of President Lowell, President Stratton and Judge Grant “sand-bagged” the educational world? At least if I did go, there would be nothing left undone to be regretted some day. And this was the ultimate and perhaps the last thing any of us could do for them, for Sacco and Vanzetti were to be executed some time after midnight on the tenth.

On arrival in Boston the next morning, I found that a taxi taken from any station, any public stand or any hotel brought a man up to book your destination and the number of your taxi. Only from my Club was this ceremony omitted. A traffic survey then under way in Boston may or may

not have been responsible for such a thirst to know every destination. At least on that day in that city where once I had prepared for college, while I dreamed about Emerson and Margaret Fuller and met such great liberals as Colonel Higginson and Professor John Fiske, it was impossible not to be amused at the anxiety my destinations must, over some eighteen hours, have caused those booking men employed by “protected” Boston, for I came and went steadily morning, afternoon and night among the very places which were taboo and under guard. It would also have been impossible not to have enjoyed the Boston police on that day. They were such nice-looking, well-dressed men who but gained in interest by the fact that so many of them seemed frightened. The officers on guard at the door of Defense Headquarters regarded me with a suspicious eye.

Climbing the two flights of narrow stairs at 256 Hanover Street, passing through a group of people too large for the narrow passageway and the spare, bare outer office, I found myself in the midst of “Headquarters.” On the walls was one poster often repeated: JUSTICE IS THE ISSUE! Side by side with this quiet statement were some of the “unguarded” remarks made out of court by Judge Webster Thayer. As I stood there, a stranger among strangers, I saw many men and a few women. Among the women was one who was elderly. She was dressed in gray and the face was good to look at. This—as I discovered later—was Mrs. Glendower Evans, for whom both Sacco and Vanzetti felt love similar to the love they gave their mothers. There were a number of younger women, and they were as well-clad and as well set up as the Boston police. What more could one woman say of other women than that! Some of the men were small and swart. Some of the men were tall and fair. But of the exploded Lombroso criminal type who, in popular opinion, throw bombs, not one was seen,—not in the whole day long.

Then one of the tall, fair men, having a name well known to the art world, asked if there were anything he could do for me. When I inquired for Mary Donovan he said she was in the inner office and he would tell her I was there. I said no, not to call her, I would wait till she came out. Almost immediately Miss Donovan came out, a fine-looking dark Celt whose pale face had in it not only strength but also warmth.

When, a few minutes later, I told her my name, Mary Donovan grasped my hand, saying “I am so glad you have come!” and sent me into the inner

office to wait for her.

In that inner office were four people: two men and two women who received me politely. One of the men gave me a chair. But, except for the sending and answering of telephone calls and the coming and going of telegraph and other messengers, the quiet that reigned in the office when I entered continued.

The man who had given me a seat—his seat—sat down on an unopened bale of pamphlets and I noticed the slender, rather large, scrupulously clean hands resting quietly on his knees; the wide, dark, gentle eyes; the head becoming bald; the brow criss-crossed with suffering and with care; the strangely delicate, firm lips and chin. Where had I seen that look of childlike spirituality before? Ah, yes, ridiculous but a fact: in Italian painting on many a celebrated bambino face.

The other man, who went on steadily writing at the center desk around which we were, represented a type more familiar to me. The homely face, the massive head, the thick abundant hair, the look of concentration as he worked, young still, already he resembled a responsible type of American journalist. Who was he?

At the stenographic desk before the one window of that inner office sat a pretty “child” working silently and rapidly addressing envelope after envelope, for the new Bulletin of the Committee was just off the press, containing among other articles reprints of noble editorials from the *Springfield Republican* together with a passionate editorial by Heywood Brown in the *New York World*. The “child’s” hair was a halo about her head and her features were cameo cut. She paused in her rapid work only to take or to give a telephone call.

The other woman, beside whom I was sitting, was older than the “child” but still young. Except for the man who had given me his seat and myself the grave beings in that little office were all young. And the quiet woman at my side with her lovely uncropped auburn hair, the somewhat oval features, had in her face not only the still look of suffering, but also the only indestructible youth,—that of goodness. As about that inner office, so about her was an atmosphere of stillness and of waiting. Except that she crumpled paper occasionally and that she had a dry cough from time to time, she made no motions and no sound.

Who were they all?

From beginning to end of that day at Headquarters, whose passing was noted the world over and on which more newspapers were sold than on any other day in history, in that spare, shabby center of the Defense struggle, it was plain from the instant those offices were entered that every dollar had been spent on the building up of public opinion and on fees for defense, and that not a penny had been wasted.

Up in the State House on Beacon Hill there were “banks” of telephone and telegraph wires installed, to send Sacco-Vanzetti news over the whole world; and at Charlestown was another “bank” of wires which were to flash the Death House scene to the ends of the earth. Here in the dingy office in the very center of this fight for justice, an office from which had come and would come the legal fees to pay for success or failure, there was but one wire which whistled or faded as calls were received or sent. Why this interference in such a place on such a day?

And then Mary Donovan came back, and I met those with whom I had been sitting in the little office. He of the gentle eyes was Aldino Felicani, the devoted personal friend of the two condemned men, the spirit behind the entire movement, and the treasurer of the Committee. The young man with the shaggy hair and massive head who was still steadily writing was Gardner Jackson. And the woman with the lovely uncropped auburn hair and the intelligent, good face was Rosa Sacco.

Apparently the seven years I had “served” Old Testamentwise, in obscure, if faithful, work for the Defense had won me in the minds of some of the Committee a right of friendship which I did not, I know, deserve. And it became my privilege to spend in close association some of the most momentous days in the Committee’s history.

As that day “wore on”—never was phrase more descriptive of the fixation of tragedy there symbolized and apparent—groups came and went in the outer office. The Defense Committee had done everything possible to secure a hall where these groups from New York City, Philadelphia, and from towns in many near-by states could meet. But not a landlord in Boston would rent them a hall. Finally a church was secured. Immediately police and patrol wagon were posted there. Groups came and went at Defense Headquarters, asking what to do, asking for instructions. Defense

Headquarters had no place to offer them for meeting except the church or Socialist Headquarters at 21 Essex Street.

The day before thirty-nine men and women had been arrested, among them Alfred Baker Lewis, the Massachusetts State Secretary for the Socialist Party, while engaged in silent picketing outside the State House. The groups now coming in also wished to picket. In their numbers were men and women well known in art and in letters: Lola Ridge, Art Shields, Ruth Hale, the wife of Heywood Broun; Isaac Don Levine, whose articles on Soviet Russia published in the *New Republic* had been the first to tell the American public about the new Russia; Edward H. James, a nephew of William James; John Dos Passos, and many others.

For a reply to the question as to when and where they should picket, Defense Headquarters sent them on to Alfred Baker Lewis at Socialist Headquarters. It was apparent that Defense Headquarters felt that their own work lay in the hour to hour messenger service and telephone battle, over that single “tapped” wire, which they still waged in arousing public opinion. From the beginning education for justice and not revolutionary agitation had been their work. And under Alfred Lewis’s leadership any group that wished to picket would have good advice and sane control.

I went over to Socialist Headquarters to get advice with the rest.

A group of girls called to me eagerly, “Are you going out with us?”

I answered, “I don’t know: I’m going to do what Alfred Lewis tells me to do.”

There he sat, young still although his hair is turning gray, clear-cut of feature, with the look of a boy who has just had a cool, long swim and would like to have it all over again.

He studied me and said, “That’s a Communist crowd going out to picket. I’m not going myself and I wouldn’t ask you to do what I myself am not going to do. Wait! We may be needed more later.”

That settled it, and I went back to Defense Headquarters where I might be of some use. But the crowd went out. Forty-four men and women were arrested. One courageous little woman, Dorothy Parker, was roughly handled by officers who bruised her neck and arms, marching her in the middle of the street up three cobblestone blocks.

The mob which had been watching the picketers, undisturbed and unarrested for “loitering,” backed off in front of Mrs. Parker, shouting, “Hang her! Hang them all! Hang the anarchists!”

Later, after she had been bailed, I saw her crying, not because she had been so badly bruised but because she could not forget that cry of the mob, “Hang her!” She was not an anarchist; she was not a Communist; she was not, so far as I knew, even that constitutional radical known as Socialist. She was, like Mr. Teeple, just one more American doing her duty for justice’s sake.

Still the afternoon “wore” on. Once Mary Donovan went into the outer office to send away a noisily excited group.

“Think,” she said on her return, “of their daring to come here on a day like this to enjoy themselves!”

Rosa Sacco said nothing. She seemed to drift further and further away from those unfailing friends of hers as she waited to know whether a respite would be granted and she might see her husband many times again, or whether she must see him for the last time. The cough was drier, a few more pieces of paper were crumpled, but she neither sighed nor spoke nor wept.

The Governor’s Council was to meet at noon. Surely by three or half past there would be some word. But, we heard, the Council did not meet and there was no word. It was half past five before the Governor entered his office and the Council did meet. Then they adjourned for dinner and it was half past eight before they were in session again, Attorney Arthur D. Hill with them to make one more last plea for the Defense.

But the little woman who waited, and Mary Donovan her friend, and these good men? They adjourned for no food,—they had eaten nothing all day.

Saying I would return, I went out, passing the handsome blue coats, and turning the corner to an Italian fruit stand. There I bought big rosy cling-stone peaches, plums and pears golden from sunlight and from air. And back I went, past the handsome blue coats once more, these “bombs”—many of them!—in three bags. And at the sight of food that is more beautiful than any other, as fruit is, eyes brightened.

I coaxed Mrs. Sacco. Rubbing off the fuzz carefully, she ate a peach. Then Mr. Felicani’s hand reached into one of the bags and he, too, rubbed the

fuzz from a peach and ate it gratefully.

“Oh, I’m so glad when they eat!” exclaimed Mary Donovan. “I cannot make them take any food at all!”

Of herself she neither spoke nor thought. And she took no fruit. It was plain that even her endowment of strength could not stand the strain much longer. And as for her career as a State Factory Inspector that was over, for the State had dismissed her the day the Court’s decision had been made known.

And already she was in bondage of a sort. For there are two economic and social prisons: the first in which men are shut out from the opportunity to earn their livings; the second in which they are shut in, away from those who do earn their living under conditions which are in general termed “free.” The forces behind the first order of imprisonment are found in the *mores* of an age. And those who have watched those forces at work on others or upon themselves, know how brutally efficient they can be. Imprisonment of the second order Mary Donovan was to face later on the two charges made by the Boston police. But the first she was soon to experience in all its bitterness not of confinement but of exclusion. Towards the close of August she was to begin spending days, weeks, months, looking for work in Boston and New York and to find that all doors, even those she might have expected to be open, were closed to her. Several friends were to do what they could to break through this social “police” cordon. By and large their efforts were futile. And Mary Donovan was to pay in full the charge in this country to-day against a struggle for conscience’ sake in the loss of the well-paid post of State Factory Inspector in Massachusetts. In New York in December, after more than a half a year of unemployment, she found a chance to wash dishes in Schrafft’s!

Off and on throughout that interminable afternoon and early evening, a man’s hand would reach into a bag and take plum or pear or peach. And from time to time in one way or another during the late afternoon the tension was relaxed.

Gardner Jackson, jesting with Felicani, said he could not answer a certain telephone call, “For I can’t speak Italian,—not yet!”

Or Mrs. Sacco, persuaded into something like listening to bird and dog stories, told about her little daughter’s pet kitten.

“Sometimes,” added Mrs. Sacco, with a smile that was a gleam from a storm-tossed sea-gull’s wing, “when I am not nervous, I like to pet it, too.”

Or the quiet entrance of Professor Felix Frankfurter, compact, human, friend of justice and of these breaking hearts. Or the coming and going of Joseph Moro, and Creighton Hill, friend of the Committee, alert, attentive to a thousand details.... And there was John Barry, sometime chairman of the Committee, but whether active as chairman or not, there one night every week with a regularity which never failed.

Out in Charlestown they were getting ready. The official executioner for three states, among them Massachusetts, had arrived. That death’s head of his, that mouth with its twisted fixed smile, how did he fare as he looked forward to the night’s work? He was not to be at the banquet after the Death House scene, to which official guests at the execution had been invited, for he was to return to New York on a dawn train. How would dawn feel to him? And the arms of his wife and the kiss of his little child?

To the *Brooklyn Eagle* reporter who had been with us, word had been sent by Warden Hendry that if he wanted to cover the night he would better come on out to Charlestown. But still no official word had been received at Headquarters, and now the evening was “wearing” on.

Then Rosa Sacco fainted as quietly as she had spent the day. A nurse was called who, with Mary Donovan, took Mrs. Sacco, half-conscious, in a taxi to a friend’s house, honest, fearless Lilian Haley’s. And now the night “wore on,” and stories of respite or execution were given out and “killed” and given out and “killed.”

Mary Donovan returned.

“What,” she said, with her finger pointing upward, “if the finger of God should stay this execution to-night!”

Gardner Jackson went to the State House, asking to see the Governor. And the Governor’s Secretary inquiring whether Mr. Jackson had come to see the Governor “for humane or legal reasons,” Jackson replied, “Humane. What else is left!” And he was asked to leave the State House. Here was a man who was no politician, sacrificing openly, as Mr. Jackson was doing, any possible future in the state. Now he was back.

It was eleven and the midnight hour was on its way. Still no message! Several calls came from “the friend’s house” saying that Rosa Sacco wanted Mary Donovan, and still they waited, hoping and despairing.

Word was sent from Defense Headquarters that Mrs. Sacco must be got ready for the worst. The strength of Mary Donovan was beginning to show a break here and a break there. She not only thought of the torture to those innocent men and women, but, like the levee holding back the river, occasionally a torrent of spoken anger swirled through. Several times she promised to go to the friend’s house but always she waited for another telephone call, and still no message came. Finally she took up the telephone, calling Mr. Thompson to ask what steps should be taken to claim the bodies of Sacco and Vanzetti. Her voice broke and she sobbed.

Strange, I thought, that she should still believe in the kindness of the law! Was not this belief in its ultimate kindness but one more evidence of her own generous heart?

The offices were filling up. Nobody knew what to do. Nobody knew what to think. Messages came, messages were sent, there was nothing authoritative. It was five minutes before twelve. And the sensitive face of Felicani was ghastly. And then came word that could be trusted. It was not sent by the Governor or any one connected with him: A RESPIRE OF TWELVE DAYS HAD BEEN GRANTED TO NICOLA SACCO AND BARTOLOMEO VANZETTI.

The crowded office became more still. A member of the Committee picked up the telephone and sent the message to the “friend’s house” that, without a moment’s delay, Rosa Sacco might know.

No voices were raised. There was no excited speaking. Gradually those friends who were unofficial faded away. The Committee could be seen gathering itself together to battle on for justice for these two Italian workers who had dared to hope for the day when the workers would themselves end war and poverty.

To one another they kept repeating, “We have until the twenty-second. Well, that is something.”

As she left the office Mary Donovan turned to me and said, “I’m going to Rosa. Mr. Felicani is coming later. You come with him!”

And she was gone.

Before we could leave there were odds and ends of business needing attention. Then I found myself out on Hanover Street, walking with Mr. Felicani up cool, moonlit, deserted city streets towards Beacon Hill.

We were on our way towards Boston Common where once Emerson had pastured his cow, and then up onto Beacon Hill of which Margaret Fuller Ossoli after her Italian marriage had dreamed in Italy. Where was that “kernel of nobleness” of which Margaret Fuller wrote? Was it within the State House which we were passing, or within the minds and hearts of these men and women who believed that a living law has in it, like life, elements of growth and progress; that commerce is creative only when it benefits the community as a whole as well as individual wealth; and that that education alone is really humane which is democratic and without fear?

Were not these men and women fighting for—not against—law and order? Was not justice the issue? And was not injustice the fuse which touched off every revolution there ever was or ever will be? What revolt, what destruction of law and order, could there be if there were no injustice in commerce, in education, in government?

Down a hill, then up a hill to Lilian Haley’s, the friend’s house where Rosa Sacco was. We were talking now of the education of public opinion and of the safety and the hope which lies in education and education alone. With that strange, unbendable, almost fierce, independence which those who are strong in their gentleness sometimes possess, it was plain that in Aldino Felicani was one who would never yield, never compromise, until all that a dedicated life could do had been done to secure justice, present or retroactive.

Just before we entered the friend’s house, Aldino Felicani was speaking of what the Defense Committee had to do in the days that now remained.

Of Sacco and Vanzetti he added wistfully, “Ah, these are the very best men I must ever hope to know!”

FOOTNOTES:

[1] From “America Arraigned,” an Anthology of Sacco-Vanzetti poems edited by Lucia Trent and Ralph Cheyney.

CHAPTER II

THE BEGINNING

“You cannot kill the dream of those who find
A faith that shall restore the world to men.”

LUCIA TRENT.^[2]

Past flashed the crowned roads of Vermont, then New Hampshire and finally Massachusetts: ponds, lakes, mountains, little villages, larch and hemlock, spruce and birch, fireweed, and mullein in bloom, goldenrod and button bush, brook and bridge, and the old, old farmhouses of a day gone by,—all the beauty and comfort and wealth that lie between the Adirondack region where John Brown is buried yet still lives, into the outskirts of Boston where some seventy-five years ago, Ralph Waldo Emerson lived and wrote those famous essays which still form part of the reading of all thoughtful men and women.

The land of “promise” for so many over so many scores of years! Beside the road into an old Vermont farmhouse with a lean-to roof stood a woman, shawl about her shoulders, gazing off into the trees and up to the hills. How many generations had it been since for her people, too, America had been the land of “promise”? The drape of shawl and angle of the unmistakable New England back said that it had been a long, long time.

Then we were pulling into a “marble” city where a young married couple took the chairs opposite mine. As the wife was seating herself she saw a package which had been dropped hastily into her chair by the porter as he went forward.

“What’s that,—a bomb?” said the wife, looking at it with suspicion.

“Yes,” answered her husband, facetiously, “a Sacco-Vanzetti bomb.”

Derided, and so reassured, the wife sat down and the husband opened his Sunday paper.

“Justice Holmes won’t act,” said the husband.

“What’ll they do now?” asked the wife.

“Get somebody else,” answered the husband, a young Uncle Sam, lean and muscular and plain.

Comfort everywhere and abundance! Then the smell of the sea at night, somehow curiously discordant with its suggestion of vast fresh spaces of dark water and sky as we drew into the electric-lighted yet dingy north end of Boston. I was on my way back to be with the Sacco-Vanzetti Defense Committee as the night of respite or death approached.

“There is Judge Brandeis,” ran my thought as I walked swiftly down the North Station platform; “he is really the hope.”

Stepping through the door to take a taxi over to Hanover Street, in that semi-circle of electric lights, men were shouting and waving a small pink “extra” at the top of which stood two words in big headlines: “BRANDEIS WON’T—”

After that nothing was “visible” except the panorama of thought that passed, a vague sense of going through the “gray” of Scollay Square, and the knowledge that the taxi had turned around at the end of one of the cross streets and that we were in front of “256” and the steep stairs, two flights up, to the offices.

Gardner Jackson and Mary Donovan were not there. But Joseph Moro was, —always there, always busy.

It was his voice asking, “Have you met Miss Vanzetti?”

The memory of another voice was in my ears, that of a woman of letters who has worked and lived in Italy more or less for thirty years and whose books on Italy are familiar friends to many who love that land.

Again that literary friend was saying, “I understand that the Signorina Vanzetti has behaved herself like a heroine and a lady from beginning to end of her stay in Boston.”

But the “end” was not yet. Beside Miss Vanzetti sat Rosa Sacco. From the glow on those sensitive faces it looked even as if a happier end might be in sight. And then it occurred to me that both had just come from the Scenic Auditorium meeting where they had been given so kind a greeting from the loyal thousand gathered there. Friendship in such an hour casts no common

light. Perhaps it was the reflection of that welcome which was still upon their faces.

And the night passed, even as those winding, hill-cupped roads of Vermont and New Hampshire had passed. Only the panorama of dreaming and waking was not of pond and lake, of mountain, of village and of tree, of flower, rock, bridge, and ancient house.

The panorama was of brave men and women who, in the seven years' struggle they had made for justice for these two workers who had been dreaming of and working for a world without war and poverty, had shown the principle of selflessness; those two noble prisoners back in the Death House again, already from their hands the touch and scent of strong leather, the silvery coolness of fish and the smell of the sea gone forever; the Defense Committee and its counsel, without hope, fighting on to the end; the friends who for justice's sake—doctors, lawyers, merchants, pastors (but no priests)—rallied about them, giving beyond their means, working beyond their strength; and these two loving women before me who spoke precisely and with quiet.

And somehow in those passing human pictures were all the strength, intention, beauty of life itself, crowning dream and waking with more wonder than hill the valley,—that valley of the shadow of death,—a symbol towards which Nicola Sacco and Bartolomeo Vanzetti were on their way.

Defeat? Yes, of a kind, there at the Bellevue Headquarters where the Citizens' National Committee, an eleventh hour organization, was sponsored by men and women of acknowledged power, already a list of 505 names, many of which are known for public service throughout whatever parts of the earth are still socially-minded: Jane Addams, Judge Amidon of North Dakota, Mary Austin, Howard Brubaker, J. McKeen Cattell, John S. Codman, John R. Commons, Waldo Cook, John Dewey, Dr. Haven Emerson, Mr. and Mrs. Henry Walcott Farnam, Mrs. J. Malcolm Forbes, Norman Hapgood, Arthur Garfield Hays, William Ernest Hocking, John Howard Lawson, Mary E. McDowell, Mr. and Mrs. Henry R. Mussey, George E. Roewer Jr., Graham Taylor, John T. Vance, Oswald Garrison Villard, Marian Parker Whitney, Mary E. Woolley, and some five hundred other names representing conspicuous achievement. ^[3]

Nevertheless it was a Committee which in the very process of organizing suffered from disorganization, attacked from all sides by the consciousness of the mythology of fear which the philosophy and economics of a century had built up and a World War consummated. Now as swiftly and inexorably as cancer strikes the human body,—money-symbolism, greed, class-consciousness, class-hatred, covering themselves with the garments of respectability, law, and patriotism, had struck into the social body. A strong Committee, despite its strength aware of its helplessness, consisting among others of Dr. Alice Hamilton of Harvard, Paul Kellogg of the *Survey*, Amy Woods, Waldo Cook of the *Springfield Republican* and John F. Moors, was formed to represent the Citizens' National Committee. Mr. Moors is a Harvard Overseer as well as a banker. It was he who persuaded President Lowell to serve on the Advisory Committee. When the decision of the Committee was brought in, he was willing to accept it but joined the Citizens' National Committee to ask for clemency only. At noon this delegation called upon the Governor. The Governor's Secretary Mr. MacDonald, who had handled all the material submitted to the Governor and dealt with all the witnesses, derailed the purpose of the Committee by greeting Waldo Cook with the accusation that Mr. Cook had accepted a bribe of \$20,000 from the Defense Committee to write his Sacco and Vanzetti editorials for the *Springfield Republican*.

And defeat at Defense Headquarters, too? Yes, of a sort—the kind whose terms have in them ideas which find symbolic immortality equally upon the Cross or in the Death House.

That noon Felix Frankfurter said in the dingy corridor of Defense Headquarters, out of the hearing of Rosa Sacco, "She must not be made conscious of the larger issues of this thing, for now how can she think of anything but that it is her loved one who suffers! Yet somehow, no matter what happens to-night, I am too healthy—or something—to give up hope. I cannot believe it is the end."

And the spent figure of Aldino Felicani, bending to Destiny but not broken.

And the arrow-flight of Arthur Hill's car rushing now southward towards the sea to ask legal intervention from one, a judge of the Supreme Court, who, showing neither hospitality nor the quality of mercy, that early morning missed the great opportunity of his career. Then another flight

northward, desperate, the last chance, in an open boat upon the sea, to an island whose shoreline is a rocky temple of beauty upon which the Defense was to meet its last shipwreck.

The day was passing. With it the hours of the two who were to be executed were spilling swiftly from one glass to another, from life to death. A curious sense of whirling figures grew upon one and of futility. It was not unlike dust in sunlight. In the offices telephones rang incessantly, telegraph messengers came and went, men and women moved swiftly to and fro, typewriters clicked.... And in those offices at the Bellevue, as well as at the Defense Headquarters, national, as well as international contacts by telegraph and cable were bravely maintained to the last.

A few figures stood out as somehow expressive, in their very difference, of this united struggle of conscience against injustice: John Dos Passos flitting about, cheerful, charming; Mrs. Elliott here, as in her work for peace, fearless, gentle, quiet; Paul Kellogg frayed with years of battle for social welfare, pale, determined; Dr. Alice Hamilton of Harvard, strong in reserve; Waldo Cook, cool-headed, responsible, ready at any cost, but never by any means except by the use of reason to maintain the editorial position of the *Springfield Republican*. Mrs. Glendower Evans, in gray, white-haired, was seated, a Quaker-like figure in the midst of the Woman's City Club, waiting, talking with the friends who came to her. Mrs. Evans's faithful friendship to Sacco and Vanzetti, and therefore to the issues of justice, had proved itself in more than one way. Not only had she given the case her financial support but also she had assembled evidence with, as a friend wrote of her, "an insight as to its value in court which was worthy of a mind long-trained by court practice." Best of all was the gift of herself, so complete that she was troubled not to have been able to share even imprisonment.

And there was Powers Hapgood testing the free assemblage and free speech issue again and yet again, thinking, as Paul Kellogg wrote of him in the *Survey*, "If, when the lives of two men were at stake and thousands of working people believed they weren't getting justice at the hands of the courts, you couldn't even get a permit to discuss the issue on Boston Common, then it looked as if we had let our old liberties be scrapped for us and political action didn't offer a way out. And they would be scrapped, if we didn't exercise our rights and show that men believed in them."

Assuredly in those thirteen days in Boston from the tenth of August to the twenty-second, when the issue of justice hung in the balance, with those in power there was no spirit of making good a mistake either by experience or by free discussion. Boston Regnant through Chief of Police Crowley denied all requests for use of the Common. And even upon that night of the twenty-second Crowley was to refuse Miss Hale's request for the use of Bunker Hill Monument as a place for free assemblage, "where the people might repeat the Lord's Prayer or sing hymns." It is not improbable that many sorts and conditions of Americans who, for conscience' sake, assembled in Boston during those days, wondered in what traditions of free speech and free assemblage the police representation of those in power had been trained. It is certain that the social and political education of those who controlled the police had included the name of John Stuart Mill and possibly even a certain paragraph from that most famous of his essays ON LIBERTY: "BUT THE PECULIAR EVIL OF SILENCING THE EXPRESSION OF AN OPINION IS, THAT IT IS ROBBING THE HUMAN RACE; POSTERITY AS WELL AS THE EXISTING GENERATION; THOSE WHO DISSENT FROM THE OPINION, STILL MORE THAN THOSE WHO HOLD IT. IF THE OPINION IS RIGHT, THEY ARE DEPRIVED OF THE OPPORTUNITY OF EXCHANGING ERROR FOR TRUTH; IF WRONG, THEY LOSE, WHAT IS ALMOST AS GREAT A BENEFIT, THE CLEARER PERCEPTION AND LIVELIER IMPRESSION OF TRUTH, PRODUCED BY ITS COLLISION WITH ERROR.... WE CAN NEVER BE SURE THAT THE OPINION WE ARE ENDEAVORING TO STIFLE IS A FALSE OPINION; AND IF WE WERE SURE, STIFLING IT WOULD BE AN EVIL STILL."

Throughout the day it seemed clearer and clearer, where much was confused, that already as individuals Nicola Sacco and Bartolomeo Vanzetti were being lost sight of, that already they were gone from our midst—though they had still a few hours to live—and had become symbolic of issues more important than the life of any human being can ever be.

And then another figure in the midst of many: Alfred Baker Lewis, himself just out of the police station, coming swiftly through the hotel lobby.

Catching sight of me, he called, "A lot of them have been arrested and we haven't any money left to bail them. Have you any?"

"Yes," I answered, "I'll take over what I have and get more. Where shall I go?"

“They’re in the Joy Street Police Station. Mary Donovan’s there.” And he was gone.

So was I in a quick shift from the Bellevue to the lock-up and the greeting with Mary Donovan standing by her “people” in and out of jail.

In the flight to and fro in which, through Amy Woods, John Dos Passos, Mrs. Glendower Evans, Arthur Garfield Hays, Edna St. Vincent Millay, and some other generous friends, more than enough money was collected to bail out a group of over one hundred and fifty men and women, certain fragments of pictures stood out: a young man, stunted in growth, with pure childlike face, being hustled down Joy Street between two officers twice his size;^[4] Professor Ellen Hayes of Wellesley being taken to the patrol wagon on the arm of a young Irish bluecoat—untroubled, serene, “a grand soul” as Mary Donovan said of her later that day; some groups of garment workers cheering their comrades at the risk of being themselves arrested; Edna St. Vincent Millay seated in the bail room, her grave, dark husband, Eugene Boissevin, standing beside her; Clarina Michelson, with energy undiminished by the Passaic strike, cheerful, kindly, being bailed; Lola Ridge coming out of the inner guard room, her face solemn in the solemn hours that were passing.

Nevertheless that jail will remain in my memory as the only gay place which I saw in those thirteen days.

From one nice-looking group being herded in, a voice called blithely, “Here come some more of these jail birds!”

They looked it, America’s youth, best and bravest! And within that station were being deposited the many placards which many had been carrying, among them one which had in it the meaning of all the others,—Paula Halliday’s SAVE SACCO AND VANZETTI! IS JUSTICE DEAD?

Here were none of those who, to quote a line from Laura Simmons’s sonnet, kept their “prudent way within the crowd.” While I waited in the bailing room where, in addition to the bail asked, the bailer collected two dollars for each arrest—his way of earning a living!—a man, pointing to a suit case, asked me to sit down. It was kindness, and in such a place well to cultivate kindness.

For awhile all the windows were shut tight. Within a space adequate for two score there were packed over several hours almost seven times that number. The windows were closed, for some fifty garment workers were chanting the Internationale, their triumphant, militant song of brotherhood.

From the guard room Clarina Michelson, Helen Todd, Lola Ridge, and others were being let out. Mary Donovan seemed anxious about some who should be bailed at once, among them Powers Hapgood. She turned to look for him, but, strangely, he was gone. And with him the day was going, too.

The last night had come. At Defense Headquarters, Louis Bernheimer was sending and receiving messages. He was as suddenly and mysteriously present on this night as he had been independently and mysteriously active in behalf of the Defense Committee, for unknown to the Committee, Mr. Bernheimer had written and circulated 30,000 pamphlets to ministers throughout the country. A graduate of Yale in 1917, an air pilot in France during the war, a student of Chinese philosophy, a hermit, he had already been a source of influence to the Committee.

Powerful, cynically courageous, he betrayed his emotion by no conscious sign. Unconsciously, however, he revealed the strain under which he worked, for every once in a while he whispered to himself.

The wire Louis Bernheimer handled kept efficient touch with all who belonged in that office and yet were not there. Inside the office the editor of an Italian paper, Serafino Romualdi, was taking notes, now asking how to spell "monument," then checking against some other unfamiliar word.

Via the telephone the office knew that Mary Donovan, a lawyer with her, had hurried out to the psychiatric hospital to which the state police had been taking Powers Hapgood even as she had turned to find him somehow mysteriously vanished.

The office knew, too, that Gardner Jackson and his sister, Dr. Edith Jackson, were on their way with Mrs. Sacco and Signorina Vanzetti to the State House to make one last appeal to a cast-iron executive; and that Michael Angelo Musmanno and Aldino Felicani were on their way back from their farewell in the Death House, Mr. Musmanno to act as interpreter for Vanzetti's sister, Aldino Felicani to return to the Defense office.

What was there for two women to do, for Ruth Hale and for me? An age-old prerogative of women: feed hungry men. Others would be coming in, and they, too, whether they knew it or not would need food. And no food except a bag of peanuts was on that table banked with telegrams, letters and carbons. We went out after coffee and sandwiches and milk.

Waiting, we, too, had coffee on the clean table by the cool window of that little Italian restaurant one flight up. We read there words from a letter which had come from a young editor: “It seems so inextricably intertwined with the most inert and selfish of human motives, the desire to be comfortable, not to be bothered, to maintain the *status quo*, to keep things as they’ve always been, to defend institutions from attack, to get rid of men of that type. Reason is no longer in evidence. And I have yielded momentarily, more than once to the weak wish that it was all over and filed away neatly.”

Quickly now—after seven years of delay—one sort of “filing” would soon be done and over. And then that letter which had come straight out of the heart of youth leapt into flame: “One is removed from life and death, from all emotion, and suspended in a desperate abyss, where calmness and self-control are the things most needed. Events happen, and are seen in crystalline stillness. But the mind, the soul, continue the hopeless struggle, for all is not lost, as long as the desire for justice persists.”

For all is not lost as long as the desire for justice persists! Around the corner from Headquarters over in Salem Street in the rooms of the Hod Carriers’ Union, the “desire” was most certainly persisting. Mother Bloor had come all the way from California to speak for justice for Sacco and Vanzetti. Lola Ridge and John Howard Lawson had passed through Headquarters and had gone over to Salem Street to speak for justice.

As we sat on, quiet in the tense office, messages coming and going, now and then a cup of coffee being poured or a sandwich eaten, in my thoughts were lines from Lola Ridge’s “Two in the Death House” which, repeated to me the week before, she was now chanting over in Salem Street.

“You have endured those moments, you
Close to the rough nap of earth, and knowing her perennial ways.
And when, on some one of your counted mornings, light
That pulls at the caught root of things
Has pierced you with a touch, or leavened air,

You too have hoped—with the ardor of young shoots, renascent under concrete,
And with them have gone down to defeat again.”^[5]

Dos Passos, flitting into the office, called: “It’s more cheerful over there! Come on over!”

Then suddenly, when Miss Hale and I were already halfway down the stairs, from the street came uproar, and the rush of many feet and the sound of hundreds of voices.

Mother Bloor had been arrested for speaking out the window of the Hod Carriers’ Union to some five hundred people who had been unable to get inside.

When the police were heard coming up the stairs of the Hod Carriers’ Union to get her, Fred Beale, a splendid type of young man, threw his arm about Mother Bloor to protect her, saying, “You mustn’t let them get you!”

Brave as always, she disengaged his arm, and said, “You’ll have to let me go with them, Fred!”

And quietly she went away with the police, and from Hanover Street had come the angry shout, “Mother Bloor’s been arrested!”

Putting my hand on Ruth Hale’s arm, I held her where she was. She had done her best to get Crowley to give a permit for the use of Bunker Hill Monument for all who would meet together and speak. And she had failed. Now was not the time for any one to “strike” again.

Dos Passos had disappeared, and we went back up through the outer office and on into the office where messages came and went and there was more silence than speech.

The outer office filled up and emptied intermittently, rich and poor alike coming and going. From a brave mission to plead with the Governor, Mrs. J. Borden Harriman and a friend were there, like the brave gentlewomen they are, standing fraternally in the outer office.

From that outer office, too, came the sound of a woman’s voice, curiously deep, speaking with a slight accent: “They wanted us to come over and now

they don't want us. We have worked hard and made sacrifices. They want all the power. We want some power, too, and we are going to have it. During the war, thinking my name was German, the dirty dogs framed me. And then they found I wasn't German and had to let me go. They think they hold a first mortgage on us, do they? But they—"

Who were "they"? Was that the government, political wealth, or what was it? Were those the terms in which our foreign born now thought of this land of promise?

Mother Bloor, quickly bailed by Mary Donovan and quickly back, was seated in the outer office.

But a small group from the Hod Carriers' Union was making its way out to Charlestown Prison. There, now, Sacco and Vanzetti were momentarily expecting the summons to that chair visible from their adjoining cells, with its

"—— cap that pours into the brain
The livid needles of its pain."^[6]

At eleven o'clock the group led by Lola Ridge having received neither orders nor suggestions from Defense Headquarters, they had started, a straggling half hundred, for Charlestown.

In sight of the roofs of the Jail, Lola Ridge had found herself in the lead, holding by the hand a small school-girl who had accompanied them from the start.

Jail in sight the school-girl had said, "Here is where I say good-by to you!"

With a young Scotchman and another girl, Lola Ridge slipped under the ropes and started straight for the cordon of mounted police and the Prison doors. A young mounted guard, a boy, rode down upon her.

As he reined in his horse fairly over her, she heard him whispering in a frightened voice, "What do you want?"

Daring the trooper to ride her down, she refused to leave the rope.

Suddenly there was the uproar of conflict. A group of men from the straggling fifty she had led, had thrown themselves between her and the police now closing in upon her.

A friend, Carline Murphy, knowing, as the men did, that an order had been given for Lola Ridge's arrest, slipped in beside her.

While the conflict between the men and the police continued, Carline Murphy drew her away, saying, "Lola, come! I know a way to get near the Jail."

This she did to save her, and, still asserting that she knew a way to get near the Jail, they were lost in the crowd.

Mary Donovan, too, was back again in the inner office. She and the lawyer had seen Powers Hapgood. Now she was urged to drink a cup of coffee and eat a sandwich.

As she bit into the large sandwich, humor flashed over the pale face. "This is what I call strong bread!" she exclaimed.

And while she ate, she was giving an account of Powers Hapgood. Before they were allowed to see him, they had been kept waiting two hours because the Superintendent said he had "to have his little tea." Admitted, they had found Hapgood in bed and eager to tell his experiences.

When the attendants had asked him why he was there, Powers Hapgood had replied, "For trying to help save Sacco and Vanzetti."

Then the attendants had called these Italians "wops" and had told Mr. Hapgood he was in the very bed in which Sacco had been.

An attendant said supper was ready.

Would he like some?

What was it?

Beef stew.

And Powers Hapgood had said, "No, I don't want beef stew. I'm a vegetarian."

"And after that," said Mary Donovan, humor bubbling up again, "they were sure he was psychopathic."

The attendants, who seemed to be a "gentle lot," had then given Mr. Hapgood an eggnog and some bread and butter.

Gardner Jackson and Dr. Edith Jackson came in. Gardner Jackson sat down by the telephone. There was silence. They had come from the Governor's office, on their return leaving Rosa Sacco and Signorina Vanzetti at Lilian Haley's.

Dr. Edith Jackson, her head between her hands, spoke in a trembling voice, "Twice the Governor said, waving his hand toward Rosa Sacco and Signorina Vanzetti, 'It is these ladies that move me most.'"

And some in that office wondered, "Was it?"

Heard, too, over the Governor's telephone during that hour was the ringing voice of Attorney Thompson who believed, and still believes in the innocence of these two men.

In the Secretary's office, where he stayed while the others went in to the Governor with Michael Angelo Musmanno to act as interpreter,—in the Secretary's office, Gardner Jackson was offered a cigar!

Mary Donovan spoke less and less, answering an occasional inquiry which came from the "friend's house" where again Rosa Sacco was waiting for the end, but this time not only with faithful, fearless Lilian Haley beside her but also Signorina Vanzetti.

And again at Headquarters all were waiting, with hope, without hope.... On that night of August twenty-second, haunting phrases, aspects of courage that did not flinch, many invisible presences in remembered word and look and act were with those who assembled in Defense Headquarters and wherever a group was gathered together in the name of Sacco and Vanzetti.

At the telephone the voice of Gardner Jackson, as the minutes passed became more and more quiet: "Was the execution to go forward?"

"No news?"

"Bad!"

"No, nothing,—nothing at all!"

So the brief inquiries and monosyllabic answers followed one another.

Beyond the doors of Defense Headquarters events went forward that will never be recorded, and all expressive of sympathy for this tragedy reaching its visible climax.

One experience was that of Helen Peabody, the artist, who also had made her way out to the Jail, got detached from her group, and had been arrested. She was taken into Charlestown Prison where in the guard room a courteous police officer had offered her a chair.

Suddenly she realized that she was within the very walls that held Sacco and Vanzetti,—there where they were about to die. In her thought saluting them, Helen Peabody continued to stand. Placing her hand upon the walls that held Sacco and Vanzetti, she stood at attention in that jail guard room till after midnight.

As midnight approached at Defense Headquarters, even when there was speech there was yet stillness in those offices.

During that hour before midnight Debs was spoken of,—the fact that the last money order he had been able to make out had been for this Committee.

And some one in the office said, “All day thoughts have been repeating a prayer taught when we were children, ‘Now I lay me down to sleep.’ They have nothing to regret. They are good children. They will sleep well.”

Aldino Felicani, sitting with bent head, answered gently, “What are two lives! It is the ideal.”

It was midnight. Quiet and more quiet, Gardner Jackson was speaking at the telephone.

Madeiros was gone.

Once a thief had hung on either side, the Christ between. Now, two idealists, not one, as if symbol of an achieved fellowship for which Christ had lived and died, and but one thief. These two, atheists though they might be, of the Brotherhood of Christ.

And perhaps in the moment when from Nicola Sacco they were cutting off speech with the straps guards were fixing about his head and the Death House heard him calling out those last words: “Long live anarchy! Farewell my wife and child and all my friends!... Farewell, Mother!” came a cry from Mary Donovan, “I can’t—I can’t believe it!”

Her brother and a friend were swiftly at her side, there was the snap of an ammonia capsule, and control quickly regained. Still that belief in the ultimate kindness of the law.

Vanzetti next,—gentleman of a gentle land, shaking hands with his guards, thanking Warden Hendry for his kindness, and, even as they blindfolded him, from this atheist those Christlike words: “I wish to forgive some people for what they are now doing to me.”

In the ears of those who stood in that Death House must have rung down two thousand years of time the words of Another, “Father, forgive them, for they know not what they do!”

Through the inner door of Defense Headquarters tumbled the Italian editor. Unable to speak, the breath in him shaking the whole man, he bit at a roll of papers he held in his hand.

Then, crying out convulsively, “They are gone!” he threw himself head and shoulders, sobbing, upon the table.

And in that moment there was no separation between manhood and tears. They were one and alike beautiful.

Most courteous and most sensitive brother of ours, you meet a double tragedy. *From what* did you come? *To what* have you come? Fleeing Fascism in your lovely land, what is it you have gained here in this country of which Sacco wrote as “always in my dreams”?^[Z] Is it freedom? Is it the ideal? What was it that—the ideal—you hoped of your land of promise?

From the outer office, some weeping, all quietly, they were going down the steep stairs.

In the inner office Mary Donovan spoke, “Come, let us not answer the telephone any more.”

And we went out, in groups or alone, down the stairs, and into the night.

Those thirteen days from August tenth to August twenty-second were over.

Then, after hours that seemed eternity, the way back to the foothills of the Adirondacks where John Brown lies buried. Land of promise, beauty and wealth everywhere! Hills and rushing streams of the Berkshires in the summer sunlight, the deep valley of the Hudson in the heat of afternoon, in the dusk the thin ribbon of water and first cliffs of Lake Champlain.

In my thoughts were another beautiful land and another Brotherhood struggling for justice, Padraic Pearse and his poem “TO DEATH”:

Of wealth or of glory
I shall leave nothing behind me
(I think it, O God, enough!)
But my name in the heart of a child.

The train came to an unexpected stop outside a little fortress town, among the first of those historic towns on Lake Champlain.

Above the sudden quiet, I heard a high-pitched woman's voice, "That Italian case that was on at Boston."

"When?" asked another woman who sat beside her.

"To-night. But I didn't get tuned in in time and—"

With a jerk, through the dark, the train went on.

FOOTNOTES:

[2] "America Arraigned," edited by Lucia Trent and Ralph Cheyney.

[3] V. [Appendix C.](#), pp. 108–120, for the 505 names of the initial list taken by Paul U. Kellogg, editor of the *Survey*.

[4] The author of "Thirteen Days" has thought many times of the unfairness and omissions inevitable in any attempt to make adequate or accurate records during such days of confusion. Although he will be found among those who stand up and are counted again and yet again, the author does not know the name of the stunted boy with the beautiful face. Another illustration of the incompleteness of such a record as this—if such illustration is needed!—is the fact that several men and women who during those last years were of supreme comfort to the doomed men were those who because of age or illness or distance were not present at the end. For example, Alice Stone Blackwell to whom Vanzetti wrote a very large number of letters.

[5] To be found entire in "America Arraigned," edited by Lucia Trent and Ralph Cheyney.

[6] From a poem by E. Merrill Root in "America Arraigned," edited by Lucia Trent and Ralph Cheyney.

[7] "The Letters of Sacco and Vanzetti," edited by Marion Denman Frankfurter and Gardner Jackson, p. 10.... Students of these issues should read, too, the valuable appendices to "The Letters."

CHAPTER III

THE MARCH OF SORROW

“Pass not too near these outcast sons of men
Where walked the Christ ahead! lest you, too, share
The rabble’s wrath! in time take heed! beware
The shame—the bitter woe of Him again!
Your flaming zeal speak not so rash—so loud!
Pass on your prudent path within the crowd.”

From “The Way,” by LAURA SIMMONS.^[8]

“And within the offices of the Defense Committee that day, how was it?”

“It was businesslike,—very unpleasant,” answered Rose Pesotta.

“You mean?”

“I mean that little was said, and yet all seemed to be saying, ‘We must bury our dead!’ They could think of nothing else.”

Between the midnight of their execution and the Sunday of the March of Sorrow, throughout the world protest and violence had been expressing themselves in one way and another,—portents for all who had eyes to see and ears to hear.

In Cheswick, Pennsylvania, on the 22nd, state troopers had ridden into a peacefully conducted protest meeting of some fifteen hundred striking miners and their wives and children, and two hundred had been injured. They were in an orchard, picnicking in groups, when it all happened. A trooper who had swung his club once too often upon the heads of women and children had been killed. The newspapers told about that. The news did not tell about the woman, mother of four children, who was so beaten up that she bled to death. The news did not tell about old women who were assaulted, or about the young women and children about whom Don Brown

told, through the medium of the *New Republic*, women and children beaten, thrown across rooms, gassed and ridden down. Did Pittsburgh know? What would William Penn have thought about his namesake state if he could have been present at the bloody dispersement of this orderly, peaceful protest meeting in behalf of Sacco and Vanzetti?... In Colorado in the coal fields matters did not fare any better.

In London, on August 23d, forty persons were injured near the Marble Arch where mounted and foot police charged Sacco-Vanzetti sympathizers. The crime of these sympathizers was that they tried to march. In Paris on the same date street benches were torn up and newsstands were overturned to be used as barricades by a mob of some fifteen thousand sympathizers. In the conflict hundreds of civilians were injured, and scores of police.

There were demonstrations throughout the civilized world as well as in London and Paris. In Rosario, Argentine, throngs waiting in silence, in silence bared their heads when just after midnight the news of the executions reached them. At Buenos Aires a sympathetic strike and the boycotting of American manufactures and products was organized. At Sydney, Australia, a huge procession protested the executions and resolutions were passed by the workers to boycott American goods. At Johannesburg, South Africa,—Olive Schreiner's country,—an American flag was burned on the steps of the Town Hall and speeches were made urging the boycotting of American goods. In both Berlin and Leipzig there were serious clashes between rioting protestants and the police. In Oporto, Portugal, many people were hurt when police dispersed a demonstration being held in front of the American Consulate.

But at Headquarters, little was said, and yet, as Rose Pesotta expressed it, all were saying, "We must bury our dead." Stillness, fog-like, blanketed both grief and work, and was broken only by the buzz of telephone, or the question or answer of some quiet voice.... The authorities had nailed a two by four plank upright in the entrance of Defense Headquarters, so that no coffins could be carried through and up the stairway. It had been the plan of the Defense that loving hands should bear the bodies of Sacco and Vanzetti up the stairs in order that they might lie in state in those rooms where the battle for their lives had been fought. The Rotenberg Estate, which owns 256 Hanover Street, had complained to the police. In death as in life the

Committee met defeat, and the bodies had to be taken from Charlestown Prison to Langone's Funeral Chapel.

In many places outside that Funeral Chapel might have been heard the harsh echoes of cheap denunciation of those who now lay still. But the sound that was in the ears of the men and women in the Defense Committee and in other committees that had struggled to save them, were the "Hail and Farewell" of Sacco and Vanzetti to the Defense written in the Death House on August 21:

"THAT WE LOST AND HAVE TO DIE, DOES NOT DIMINISH OUR APPRECIATION AND GRATITUDE FOR YOUR GREAT SOLIDARITY WITH US AND OUR FAMILIES. FRIENDS AND COMRADES, NOW THAT THE TRAGEDY OF THIS TRIAL IS AT AN END, BE ALL AS OF ONE HEART. ONLY TWO OF US WILL DIE. OUR IDEAL, YOU OUR COMRADES, WILL LIVE BY MILLIONS. WE HAVE WON. WE ARE NOT VANQUISHED. JUST TREASURE OUR SUFFERING, OUR SORROW, OUR MISTAKES, OUR DEFEATS, OUR PASSION FOR FUTURE BATTLES AND FOR THE GREAT EMANCIPATION.

"BE ALL AS OF ONE HEART IN THIS BLACKEST HOUR OF OUR TRAGEDY, AND WE HAVE HEART. SALUTE FOR US ALL THE FRIENDS AND COMRADES OF THE EARTH.

"WE EMBRACE YOU ALL AND BID YOU OUR EXTREME GOOD-BY WITH OUR HEARTS FILLED WITH LOVE AND AFFECTION.

"NOW AND EVER, LONG LIFE TO YOU ALL, LONG LIFE TO LIBERTY.

"YOURS FOR LIFE AND DEATH.

NICOLA SACCO

BARTOLOMEO VANZETTI."^[9]

And as at Defense Headquarters they were getting ready to bury their dead, in the ears of millions of sympathizers the world over were not only those words of HAIL AND FAREWELL, but also all the tender courtesies that these two gentlemen of a gentle land had not forgot in their final hours of agony. There was Vanzetti thanking his unfailing friend, Mrs. Jessica Henderson, "most heartfully" for her care of his sister, and admitting that at sight of his sister his heart had "lost a little of its steadiness." And Vanzetti writing a long and beautiful letter to "Friend Dana," the student of English Literature.^[10] And there was Sacco writing a last letter to his little son, Dante, of which some of the sentences once read will always be remembered:

"What here I am going to tell you will touch your feelings, but don't cry, Dante, because many tears have been wasted, as your mother's have been wasted for seven years, and never did any good. So, Son, instead of crying, be strong, so as to be able to comfort your mother, and when you want to distract your mother from the discouraging soulness, I will tell you what I used to do. To take her for a long walk in the quiet country, gathering wild flowers here and there, resting under the shade of

trees, between the harmony of the vivid stream and the gentle tranquillity of the mother nature, and I am sure that she will enjoy this very much, as you surely would be happy for it. But remember always, Dante, in the play of happiness, don't you use all for yourself only, but down yourself just one step, at your side and help the weak ones that cry for help, help the persecuted and the victim because they are your better friends, they are the comrades that fight and fall as your father and Bartolo fought and fell yesterday for the conquest of the joy and freedom for all the poor workers. In this struggle of life you will find more love and you will be loved...."

Appreciation, guidance, love, courage for others, their thought in these last hours,—messages that for centuries to come will teach men how to live and how to die....

If, for their own comfort, on that last night of their life, they might have seen their Defense Committee as some others saw it: the worn face of Aldino Felicani; the persistence of Gardner Jackson; the ceaseless watchfulness of Joseph Moro; the pallor of Mary Donovan; and, centered in the midst of all their love and care, the quiet, patient beauty of Rosa Sacco.

The Governor had assured a woman of wealth—also a woman of courage and judgment—who had come to plead with him for stay of sentence, that after it was over they would both sleep better in their beds. It is probable that the only peace that night for multitudes of men and women of all ranks and of national and international interests, was the bitter gratitude that after the long agony, Sacco and Vanzetti knew the peace of death. For they knew so well that all was not over, as the authorities and the news said it was. They knew that it was only just begun.

Two days later on the evening of August 25th some eight thousand people were gathered before the doors of Langone's waiting to go in to look upon the faces of the Italian martyrs. Some had stood there all day pressing up against the ropes that held them off. Very shortly after those doors were opened, Mary Donovan, nerves at the breaking point after the long years of Defense work and those thirteen days covering the postponement and preparation for the executions, as some news and camera men were about to take pictures of Sacco and Vanzetti, took her stand at the head of the coffins, in her hands a placard two and a half feet long and two feet wide. On it were Judge Webster Thayer's words spoken while petitions for a new trial were still to be argued before him: "DID YOU SEE WHAT I DID TO THOSE ANARCHISTIC BASTARDS?"

A battle of wills then ensued between Joseph Langone, the funeral director, whose license would be at stake if trouble occurred, and Mary Donovan. The struggle was soon over. The photographers went ahead with their work, and Mary Donovan stepped outside, where the crowd of eight thousand was waiting, and handed her placards to a newspaper man to copy. As they were being returned to her a Sergeant of the Police snatched them from her, and another struggle was begun. It culminated, despite the attempt of Gardner Jackson and Powers Hapgood to defend her, in her arrest on two charges: first, inciting to riot; second, distributing anarchistic literature.

Mary Donovan, whether her action at this time was well-judged or not, was within her rights in permitting the reporters to copy her placards. As far as the distribution of anarchistic literature is concerned, the “literature” involved was of the making of Judge Webster Thayer who might dislike having his phrases called anarchistic. Mary Donovan herself is a registered member of a political party whose tenets are opposed to those of anarchy,—I mean that political party known as the Socialist Party of the United States. She was given six months on each count or a year in prison, and her case is still to be called.

Saturday night was gone and Sunday had come. Sunday noon the March of Sorrow was scheduled to begin the long traversing on foot of some eight miles to Forest Hills where the last ceremony was to be held and the bodies of Sacco and Vanzetti cremated. From the steps and portico of Saint Paul’s Cathedral in Boston a waiting crowd was looking out upon a far greater throng which packed Tremont Street to the curb. To Beacon Hill and that State House already barred to the marchers by road signs and trucks placed end on end across all entrances to it, the Common rose in gradual ascent.

This day and hour of August twenty-eighth, 1927, was as rain and wind swept as a November day, with dead leaves falling from trees still green. Many of those who stood upon the portico steps, not a few who stirred upon the Common, believing in the leadership and healing power of ideal action, must have touched the thought of this Boston of 1927 with its American Tragedy of Injustice and its memories of Wendell Phillips and William Lloyd Garrison as one touches the inexplicable,—something of amazement and fear both in their thoughts. What did it all mean? Or Italian by birth, minds sought refuge during those gray and solemn hours by a grave in the

Campo Santo, Genoa, with its legend “PRO VITA NUOVA,” remembering Mazzini and phrases revealing his suffering and his triumph.

On Hanover Street, within Defense Headquarters, and a few doors away on the opposite side of the street at Langone’s, since early morning preparations had been going forward,—all was “business like.” At ten the Funeral Chapel had been closed. But thousands had seen those faces, alabaster in death, of a good shoemaker and a poor fish peddler. From Defense Headquarters word was being passed out that the March of Sorrow was to begin at one o’clock. There still, all was quiet and the one thought that they must bury their dead. Not permitted to begin the march with the famous red arm band about the sleeve—REMEMBER, JUSTICE CRUCIFIED! AUGUST 22, 1927—word was passed out to put the bands into pockets until a certain point on the marching route had been reached.

For hours throngs of mourners had been gathering in the North End all along the quarter of a mile between the Funeral Chapel and North End Park. Waiting open cars had been filled to overflowing with scarlet flowers, and on foot many volunteers were to bear crimson wreaths. Then the pallbearers carried out the coffins to the waiting hearses. Led by two closed cars, one containing Mrs. Sacco and Miss Vanzetti, Aldino Felicani and Dante Sacco, the other empty and waiting for the moment when the members of the Defense Committee should step into it from the head of the marching ranks, at a signal the great cortège fell into step, arm linked to arm, the motors in the cars began to throb, and the March of Sorrow was begun.

And it was begun to the pounding of horses’ hoofs, for at the head and on either side of the hearse and the two closed cars rode mounted State police clad in black raincoats and hats. The official intent was scarcely that of honoring the dead, yet the escort was not unlike that given to dead kings. To the thought of Mary Donovan and other members of the Defense from a letter returned the words of Vanzetti: “Such treatment formerly was given only to saints and kings.”... All those eight miles from Scollay Square to Forest Hills the thunder of those hoofs beat upon the ears of those who mourned.

At first, Alfred Baker Lewis said, the attitude of the police was strictly neutral. But when they saw that a procession of some fifty thousand people had determined, despite the rain, to pay honor to these two martyrs their

attitude changed. From the start a procession unique in the history of human experience both for numbers and in the length of the route covered encountered difficulties. First the police had heavy trucks set close together all across the street and directly in the way of the line of march. In the attempts of the marchers to get through or around obstacles, one man was injured by being pushed through a plate glass window. But the marchers did get around the trucks and reform the procession.

In the gray and rain of Scollay Square, where fog was drifting in and pools of water were collecting, the police charged the line and started clubbing, and a detail of the mounted police rode straight into the column. A man on the sidewalk, indignant at the unprovoked attack on the marchers, swore at the police—to do this to the Boston police is to break much more than a tenth of the decalogue—and the man was arrested and taken to the police station. By such methods the police succeeded in “clearing” Scollay Square, but they could not keep it cleared. Quietly, steadily, the thousands of mourners came on, some filtering through the police cordon, others making detours, and again forming a column of solid ranks, arm linked to arm, twenty abreast.

Past Scollay Square, a brave salute to the police, out came the red arm bands. And now arm linked in arm, step perfect, the inscription on those arm bands repeated, repeated, repeated, itself in rhythm to the marching multitudes: “REMEMBER—JUSTICE CRUCIFIED! AUGUST 22, 1927.” The long wavering line of flame under rain,—human hearts, crimson flowers, the undulating thousands of red arm bands, the hearses bearing the bodies of Sacco and Vanzetti,—the great cortège of Sorrow went on.

Upon the steps and within the portico of Saint Paul, from the Common, the waiting throngs saw them coming. In the minds of those who watched and those who marched echoed the words of the Silent Ones behind whom the great concourse was marching: “Our words—our lives—our pains—nothing! The taking of our lives—lives of a good shoemaker and a poor fish peddler—all! That last moment belongs to us—that agony is our triumph!”

The sweeping tide of human beings had moved slowly up Hanover Street, packed from curb to curb behind those shining hearses, behind the crimson flowers, and was whittled at by the police during the entire eight miles to Forest Hills Cemetery. Undaunted by either violence or the black skies

gathering more and more rain, the cortège reformed again and again, and went on,—the human spirit of justice establishing its integrity and achieving in sorrow its purpose. The love of those who marched was not unlike the love of Those Two borne along the miles of all that way, and from whose dead lips, age after age, would be scattered the truth for which they had given their lives, “ashes and sparks ... among mankind.”

On that day those who seemed to be in control were the Boston police, and they did their bit towards educating the multitudes. It was not, perhaps, the education which they thought they were giving. It was rather like a lesson Louis Rabinowitz saw taught at the corner of the Boston Common and of Charles Street. As the March of Sorrow, heckled by the police, struggled forward, the “pupil” whom the police took in hand was a typical American youth,—100 per cent American, clothes and brains. Pressed against the picket fence of the Charles Street Mall he was much amused at the plight of the funeral cortège as, desperately, the marchers sought to meet every new obstacle the police set for them, and at the same time keep order in the marching ranks.

“A sudden charge of the mounted Cossacks,” wrote Louis Rabinowitz of the Young People’s Socialist League, “brought a smile to his lips. The slow stiffening of the workers’ lines in the face of vicious clubbings drove away the smile, to leave instead a wrinkling of the brows and a look of wonder and respect. As though he wondered at such courage, and whence it could have sprung. What was the matter? Why were all these people suffering like that?”

““Hey, you! Get away from there and run!’ It was the snarling vicious growl of some mad creature. The youth quickly turned his head and saw not far distant from himself a beefy, bristling, ‘flat-foot,’ fresh from clubbing the mourners.

“The young man began to obey the threatening commands and slowly walked away from the fence to proceed along the path.

““Run, I told ye—and keep running. I’ll smash your face in for you!’ As he uttered this threat the cop rapidly moved after the youth. The latter, noticing over his shoulder as he walked the onslaught of the lumbering beef-face with his ever-swinging club, began to run. Out of breath, the Boston police ‘club-swingers’ stopped and fiercely shook his fist at the retreating back of his escaping quarry.

“As the lad ran the look of wonder disappeared from his face. In its place there grew an expression of grim determination crowned with the certainty of hope. And as he joined the line of plodding workers he uttered a single significant remark: ‘Now I know why you are fighting.’”

But on that day, in those hours, greater than those police masters was the Master of all Men. “Eloquent, just and mightie Death” had persuaded. Before the eyes of this American boy, Death was drawing “together all the

farre stretchèd greatness, all the pride, cruelty, and ambition of man,” and was showing him not only the visible symbols of courage and brotherhood but also the symbols of stupidity and injustice.

The police continued to “maintain order,” carving off from the cortège by every strategy in their power and by force large numbers of the marching thousands until what had been fifty thousand at Hanover Street became scarcely two hundred marchers at Forest Hills. They ordered opposite tides of traffic into the marchers, they even diverted traffic into the cortège, they threw trucks across the way, they rode straight into by-standing groups of sympathizers, and they clubbed. All that those who marched wanted was to reach Forest Hills, there to pay the last deference to Nicola Sacco and Bartolomeo Vanzetti. They did not want trouble. And they kept on doggedly, forming and reforming in what Blanche Watson in *The New Leader* has called their “plodding glory.” And marching, marching, marching, beside them, unseen, unheard, was another army,—all the phantasmagoria of many forces, of hope, of despair, of hate, of love, the death, the life, of all the ages through which mankind, dusty and travel-stained, has fought his way upwards.

Towards the close of the march the struggles of the cortège with the police became more acute. But under the leadership of Rose Pesotta and Alfred Baker Lewis the sympathizers kept on, the police making last brutal efforts to incite them to violence. More than seven of the eight miles had been covered in the rain.

Arm linked in arm they were swinging on bravely and silently when suddenly at Forest Hills Elevated Station came the sharp command, “Get over there!”

And police charged them, together with an automobile from the station house in which a patrolman rode down the crowd. Not a half minute was given the procession to obey before clubs began to swing and marchers to sprawl. There were curses, blows and kicks, and the guardians of law and order drew their guns. They were “keeping order,” of course! Anybody could see that, as by this last violence upon the worn men and women they succeeded in cutting away more than two-thirds of the brave and peaceful remnant of all the thousands.

Within almost a stone's throw of Forest Hills Cemetery, that "third" slipped into a side street, and reformed.... Again, arm linked to arm, they swung on through the rain and the fast approaching night, in perfect order, silent except for their marching steps, on they plodded that last half mile to the Cemetery where a cordon of state police denied them entrance. They had kept on to the end. And now, the rain coming down in torrents, they stood with bared heads before the closed gates.

There, too, by the Walk Hill entrance stood Professor Ellen Hayes of Wellesley, and some of her friends. In an automobile they had joined the funeral procession. But endlessly harassed by the police, they had detoured and gone directly to the Cemetery. They stood there by the gates, watching the police jamming and hustling the throngs. They saw the hearses come and enter the gates. Far behind those hearses and the following cars brilliant with flowers, they had seen that gallant few coming, all, as Miss Hayes wrote in *The Relay*, "whom the police and the rain and the long miles had allowed to come through. Brilliant red bands gleamed on their arms." In silence, wishing that they, too, might have been equal to the long hard march, this group of elderly women saluted them.

Now within the Chapel the quiet bodies waited till a woman's tremulous voice should speak a few unforgettable words in their memory, and the bodies should be taken into the retort rooms there, again, to be baptized by fire, yet never to the end to be free from police surveillance. For even in the Cremation Chamber was to be a parade of police joking and laughing as fire reduced all that was mortal of Nicola Sacco and Bartolomeo Vanzetti to ash.

The "last" moment had come. The little Chapel would hold no more than a hundred. Every seat was filled, and a few stood about the walls. Haggard and white, as those who stand at the foot of the cross, Mary Donovan read words, written by Gardner Jackson, that for fearless grandeur will be remembered with the spoken and written words of Nicola Sacco and Bartolomeo Vanzetti:

"NICOLA SACCO and BARTOLOMEO VANZETTI, you came to America seeking freedom. In the strong idealism of youth you came as workers searching for that liberty and equality of opportunity heralded as the particular gift of this country to all newcomers. You centered your labors in Massachusetts, the very birthplace of American ideals. And now Massachusetts and America have killed you—murdered you because you were Italian anarchists.

“A hundred and fifty years ago the controlling people of this state hanged women in Salem—charging them with witchcraft. The shame of those old acts of barbarism can never be wiped out. But they are as nothing beside this murder which modern Massachusetts has committed upon you. The witch-burners were motivated by the superstitious fear of an emotional religion. Their minds were blinded by their selfish passion to reach Heaven. The minds of those who have killed you are not blinded. They have committed this act in deliberate cold blood. For more than seven years they had every chance to know the truth about you. Not once did they even dare mention the quality of your characters—a quality so noble and shining that millions have come to be guided by it. They refused to look. They allowed the bitter prejudice of class, position and self-interest to close their eyes. They cared more for wealth, comfort and institutions than they did for truth. You, Sacco and Vanzetti, are the victims of the crassest plutocracy the world has known since ancient Rome.

“Your execution is ‘one of the blackest crimes’ in the history of mankind. It is that and more. Horrible enough would it be if the killing of you had been ordered by the political and material powers alone. How much more horrible it is to have this act sanctioned and even blessed by those who pass among us as the leaders of intellectual and spiritual power. The blatant exultation with which they aided in your death is the final sign that the act of killing you was the act of vengeance of one class—the class dominated by worship of money and position—against you as symbols of another class—the workers and all others aspiring to realize the true meaning of life.

“‘If it had not been for these things,’ said Vanzetti shortly before his death, ‘I might have lived out my life, talking at street corners to scorning men. I might have die, unmarked, unknown, a failure. Now we are not a failure. This is our career and our triumph. Never in our full life can we hope to do such work for tolerance, for justice, for man’s understanding of man, as now we do by an accident. Our words—our lives—our pains—nothing! The taking of our lives—lives of a good shoemaker and a poor fish peddler—all! The last moment belongs to us—that agony is our triumph!’

“By that triumph we are fired with an everlasting fire. Your long years of torture and your last hours of supreme agony are the living banner under which we and our descendants for generations to come will march to accomplish that better world based on the brotherhood of man for which you died. In your martyrdom we will fight on and conquer.”

FOOTNOTES:

[8] “America Arraigned,” edited by Lucia Trent and Ralph Cheyney.

[9] For letters of Sacco and Vanzetti, *Vide* “The Letters of Sacco and Vanzetti,” edited by Marion Denman Frankfurter and Gardner Jackson, Viking Press, New York.

[10] Professor Henry Wadsworth Longfellow Dana.

CHAPTER IV

ROMAN HOLIDAY

“From Heaven what sign?
What writing on the wall?
What whisper running along the wind that power and pride shall fall?”

JOSEPH T. SHIPLEY. [\[11\]](#)

On April ninth, five months before, when sentence was pronounced upon Sacco and Vanzetti, their spoken words had been wise and beautiful. As the Defense Committee said of them: “No tremor was in their voices, no uncertainty was in their bearing. Their eyes looked steadfastly upon the averted face of him who pronounced their doom of burning in the electric chair. Theirs was the complete fortitude of idealism and innocence.”

From the brief address of Sacco—barely five hundred words—return not only the courage but also the courtesy in his generous reference to Vanzetti as “my Comrade, the kind man to all the children.” And then those final words spoken to Judge Thayer: “As I said before, Judge Thayer know all my life, and he know that I am never been guilty, never—not yesterday, nor to-day, nor forever.”

After that came Vanzetti’s longer speech, answering why sentence of death should not be passed upon him: “What I say is that I am innocent, not only of the Braintree crime, but also of the Bridgewater crime. That I am not only innocent of these crimes, but in all my life I have never stolen and I have never killed and I have never spilled blood. That is what I want to say. And it is not all. Not only am I innocent of these two crimes, not only in all my life have I never stolen, never killed, never spilled blood, but I have struggled all my life, since I began to reason, to eliminate crime from the earth.”

Then had come the pause in which Vanzetti had paid tribute to Debs: “There is the best man I ever cast my eyes upon since I lived, a man that will last and will grow always more near to and more dear to the heart of the people, so long as admiration for goodness, for virtues, and for sacrifice

will last. I mean Eugene Victor Debs.... He has said that not even a dog that kills chickens would have found an American jury to convict it with the proof that the Commonwealth has produced against us.”

These two “criminals” were like that other “criminal” Debs of whom Clarence Darrow said that his only weakness was his honesty.

And then another pause, this time in courteous apology because Vanzetti must speak some harsh words to Judge Thayer: “I am sorry to say this because you are an old man, and I have an old father.”

Finally had come the close on these ringing words: “I am suffering because I am a radical and indeed I am a radical; I have suffered because I was an Italian, and indeed I am an Italian; I have suffered more for my family and for my beloved than for myself; but I am so convinced to be right that you can only kill me once but if you could execute me two time, and if I could be reborn two other times, I would live again to do what I have done already.”

To men like Dr. Dewey and Dr. Morton Prince, having within their grasp mental tools by which to test the guilt or innocence of those accused of crime, that Dedham courthouse might well have seemed but the cave of men living some twenty thousand years ago and the “law” the club which those primitive men had wielded. At the end of “Psychology and Justice,” published in the *New Republic*, Dr. Dewey writes: “The committee’s sole reference to the conduct of Mr. Thompson is that, upon occasion, his conduct indicated that ‘the case of the defense must be rather desperate’ for him to resort to the tactics attributed to him. Well, events, in which the committee had their share, indicate that the plight of the defendants was indeed desperate; and Mr. Thompson, above all others, had occasion to realize how tragically desperate. But, quite apart from the committee’s own conviction of the guilt of the accused, it was known to them that Mr. Thompson was equally convinced of their innocence; that he was conservative in his social and political views; that, at great sacrifice of time, of social and professional standing, he had made a gallant fight for the accused out of jealous zeal for the reputé of his own state for even-handed justice. Yet their sole reference to him is by way of a slur. I see but one explanation of such lack of simple and seemingly imperative generosity of mind.... Sacco and Vanzetti are dead. No discussion of their innocence or

guilt can restore them to life. That issue is now merged in a larger one, that of our methods of ensuring justice, one which in turn is merged in the comprehensive issue of the tone and temper of American public opinion and sentiment, as they affect judgment and action in any social question wherein racial divisions and class interests are involved. These larger issues did not pass with the execution of these men. Their death did not, indeed, first raise these momentous questions. They have been with us for a long time and in increasing measure since the War. But the condemnation and death of two obscure Italians opened a new chapter in the book of history. Certain phases of our life have been thrown into the highest of high lights. They cannot henceforth be forgotten or ignored. They lie heavy on the conscience of many, and they will rise in multitudes of unexpected ways to trouble the emotions and stir the thoughts of the most thoughtless and conventional.”

During those thirteen days of Boston history there were men and women, millions of them, all over the United States and in many parts of the world who, not very well-read in history and without either philosophy or experience to prepare them for such events as those dramatized, were robbed of their faith in the integrity of national life, stripped of confidence in American justice, and heart-broken by this spectacle of brutality. Before their eyes they saw what Samuel Taylor Coleridge one hundred years and more ago had described as the special danger of his own Georgian era: “An inward prostration of the soul before enormous power, and a readiness to palliate and forget all iniquities to which prosperity had wedded itself.”

These events they had to see without the perspective of history, with its tracings of the wavering line of progress, to correct the distortions of present suffering. It is they, honest, uncompromising, only in part educated, and their children’s children, who will make the revolutionists of the future. For the automatic answer of history to injustice has ever been revolution. And they read about or saw or were aware of acts of rejoicing that Massachusetts had taken the stand she had both through her official and committee representatives and unofficially, and that the men were “out of the way.”

But one, and the latest, manifestation of this spirit to which Heywood Broun calls attention in the February 15, 1927, issue of the *Nation* was the banquet at the Copley Plaza at which seven hundred Dartmouth men cheered Judge Webster Thayer for five minutes. As orgiastic as the

persecution of Christians on some Roman holiday must that wah—hoo—wahing of Dartmouth have sounded in many ears. And, as Heywood Broun says, “If truth and right dogged every step of Massachusetts justice in the case still there would be reason to object to long cheers for an electrocution.”... For the sake of Dartmouth history it should not pass unobserved that much of this cheering was, it may be, not so much intended *for* Judge Thayer as *against* Professor Richardson of Dartmouth who had testified to the judicial impropriety of Judge Thayer’s statements out of court.

Hardest of all was it for the idealistic young to see, and know, these things. Denied by their youth that cool-headedness, logic, strategy, experience, which they would have used towards ideal ends, they saw these weapons being used by those in power towards the thwarting of the issue of justice. Nevertheless, even as the older people had still believed up to the end that strong organization might help, so had the young believed that, with desperate effort, truth and goodness would at last prevail. And both had seen their desperate efforts and their measures fail.

Even within the committees so bravely at work for the defense of these two Italians, for those who cared to do so, it was possible to observe angles of selfishness, egotisms struggling for personal power. It was possible to hear words spoken which were foul or blasphemous, statements made which were not based on truth. Although it is common to do so, because of the sentimentalizing of Christianity, historically it would be a mistake to assume that those who stand at the foot of the cross, whether in the first century or the twentieth, are blameless. If, later, those who not only had come together but who had worked together fell apart, even fell to quarreling, that was not what mattered. What did matter was that for the time being all, however separated by class or character, were humane in intention; and all, however hopeless the issue, struggled together for justice.

To such a nucleus for constitutional justice as the Defense Committee itself is, the seven bitter years had revealed the worst there was to know about American politics and decadent aspects of capitalism. With eyes wide open to the truth, Mary Donovan wrote: “Do not worry about me—I may go to jail and I may not, but however my case ends we all realized that the authorities would demand some payment, for our agitation of the past years, and who would pay, but those of us who have never received, or expected

to receive, any compensation but the knowledge that we were and are right?"

The Committee and its attorneys felt, and will always feel as no one else can, the mental courage of Sacco and Vanzetti. This strength Attorney Thompson, in no sense sharing their social views, has set down about Vanzetti in a record published in the February, 1928, *Atlantic Monthly*: "In this closing scene the impression of him which had been gaining ground in my mind for three years was deepened and confirmed—that he was a man of powerful mind, of unselfish disposition, of seasoned character, and of devotion to high ideals. There was no sign of breaking down or of terror at approaching death. At parting he gave me a firm clasp of the hand and a steady glance, which revealed unmistakably the depth of his feeling and the firmness of his self-control."...

In August, during these thirteen days of indecision, many generous minds grieved because they thought men's hearts were dead. Whether these minds were liberal or conservative or radical, they were alike in seeing that in this crisis of injustice the selfishness of class warfare and social ignorance were in the ascendant. Here were race hatreds, and their senescent forms in the institutionalism of court and state. Here, working their will, were unscrupulous ambitions. Here were riches which had lost all expression of fellowship and sympathy, as wealth once held in trust for the common good in this country had kept them, and as wealth here and there still keeps them. John Maynard Keynes has said in *The End of Laissez-faire*: "I do not know which makes a man more conservative—to know nothing but the present, or nothing but the past."... Here was a death struggle. Here were human beings who were good about many things but ungenerous or bad about this issue of justice. Here were indignant angry friends of justice who spoke of the Clayton anti-trust act in one breath with its guarantee of free speech and free assemblage, and in the next spoke of the vengeance of God. Here, too, were men and women whose only wish was to get rid of men of the Sacco and Vanzetti type.

And, most hopeless reaction of all, coming out of this chaos the thought: "Thank God, it is over!"

Probably the lowest point in the spirit of *laissez-faire* was reached in an editorial in the *Boston Herald* published the morning after the execution.

The caption of this leading editorial was: BACK TO NORMALCY. Its concluding paragraph read: “It has been a famous case. It has attracted the attention of the world to an extent quite without recent precedent. It has presented phases which no serious student of our public affairs could fail to regret. *But the time for all such discussion is over. The chapter is closed. The die is cast. The arrow has flown. Now let us go forward to the duties and responsibilities of the common day with a renewed determination to maintain our present system of government, and our existing social order.*”^[12]

And there we are with the good old word “tradition” implicit in “present system” and “existing social order”! The *Herald* says nothing of the records of history. And for all its consciousness of evolution, this editorial—probably written as the men were being executed—might as well have come from the mountains of Tennessee. “Tradition” should be a means of communication, a bridge by which human beings step forward into the future. As soon as it denies the principle of growth and forbids progress, in short as soon as tradition becomes a barricade and not a bridge, is it an advantage to human intelligence?

What so often many had read about and glibly discussed, in the execution prepared for and postponed and prepared for, they had seen dramatized in class warfare and race hatred. No intelligent student of issues during that time could fail to perceive decadence in act after act. The mighty, and triumphant, wish to put an end to Sacco and Vanzetti was not only an act of hatred for these poor Italians but also the desire to maintain the *status quo* in which wealth and privilege should be able to go upon their way of the world untroubled. Here was the creed of our present economic system—a creed become hereditary—taught to the full extent of its powers. Violation by opinion of the established order of things had been punished by death. It is not improbable that many who loathed the act done nevertheless pitied some of those men who did this thing,—men familiar with the struggles of conscience and the desire to do right, men of moral integrity, yet caught in this Roman holiday of a brutal economic order as Marcus Aurelius had been caught in the Roman way of celebration, which turned Christians into burning torches. Marcus Aurelius, good and innocent, even tender, “persecuted” the Christians who were good and innocent. The gravamen of the charge against Marcus Aurelius is that he allowed the Roman

Constitution, with its cruel criminal laws, to take its way. It is a fact that Roman Stoics of the days of Marcus Aurelius did not know how pure, how innocent were those Christians whose persecutions they permitted. It is probable that some of those who are in power to-day do not know how pure and innocent are some of these radical idealists.

This was not in Rome but in Boston. This was not the Roman attitude toward Christianity. This was the attitude of a Christian government towards the attempt to educate other men along the lines of political development. These Italians were “pagan” because they were radical, and the authority which persecuted them was Christian. And the educational and political elements of the case were “framed” to robbery and murder. To-day Senator Wheeler knows whether the frame-up is *de facto* in this country or not. It has been rather a long history of frame-ups from the Chicago anarchist cases to the recent disturbances in Colorado and New Jersey in which corporations either through their own armed guards or through controlled local police, have carried on warfare reminiscent of the Middle Ages, bulwarked by a perverted use of the injunction. The long list of cases sponsored by the American Civil Liberties Union adds its testimony particularly to the prejudiced attitude of many of the lower courts.

Only the sentimentalist could have failed to see that the truth, because it was the truth, had no power whatever to stay these executions. The sole advantage during those days of indecision which truth had was not temporal, but that, although truth might be “killed” symbolically in the patient bodies of two humble Italian idealists, it could not be put out. Consumed by the fire of their own acts these two would rise again. Immortality by means of the resurrection of truth was theirs, and they knew it. Yet a strange thing had been done: in a country which had been established by those who were radicals in religious opinion, two who were radical in political thought had been executed.

It was plain that those in power did not hold their authority in what has been called “the consent of the governed,” but from some other control. For, as we could see, the “governed” had no power whatsoever. We were put through the gesture of being consulted, of being considered. We were kept in a “politic” state of hopefulness. But behind it all something we never saw, that never became definite, was in control, and waiting to strike. And it was equally plain that whatever this Power was, it considered these

executions politically, socially, morally, desirable. For some this Presence incorporated itself in the word “Reaction.” For others it found explanation in a “Fear Complex” or “Capitalism” or “Class Warfare.” For still others it found exact definition in what James Oneal has called “the drift to Empire,” and in which Sacco and Vanzetti were but one episode in more than fifty years of preparation.

During those days in Boston the police were an outward manifestation of the real mastery. No doubt many of them were performing what they thought was their duty and probably their sense of duty was in many instances not consciously servile. Yet they, too, were prostrating themselves before a Presence that was never seen,—a Presence of Enormous Power. And for the sake of “Prosperity” they were ready to palliate and forget. This Presence was not the Governor, though he represented it. It was not President Lowell and the Committee, though they expressed it. It was not Chief of Police Crowley though his uniform seemed to be its livery. It was not Warden Hendry though he was its kindly jailer. It was not even Judge Webster Thayer though he was the mouthpiece of its law.... Is it not true that it is society which prepares the so-called “crime,” and that the “criminal” is but the tool which executes it? And when “society” prepares two innocent men for the electric chair what is to be said of the inversions of so-called justice?^[13]

FOOTNOTES:

^[11] From “America Arraigned,” edited by Lucia Trent and Ralph Cheyney.

^[12] The italics are mine.

^[13] Conspicuous among friends who were not only loyal over many years to the condemned men but who also understood many of the forces at work in this inversion of so-called justice were Alice Stone Blackwell, Mrs. Cerise Jack, Sacco’s teacher of English; Amleto Fabbri, Secretary of the Defense Committee, 1924-’26; Mrs. Gertrude L. Winslow, Leonard Abbott, Roscoe Pound, Francis H. Bigelow, Mrs. Elsie Hillsmith; Mrs. Virginia MacMechan, Vanzetti’s teacher during six years of his imprisonment; Maude Pettyjohn, Mrs. E. A. Codman, and H. W. L. Dana. For letters to these and others among the greatest friends of the condemned men, *vide* “The Letters of Sacco and Vanzetti,” edited by Marion Denman Frankfurter and Gardner Jackson, The Viking Press.

CHAPTER V

OUT OF CHAOS

“Let us make new propellers,
Go past old spent stars
And find blue moons on a new star path.

“Let us make pioneer prayers.
Let working clothes be sacred.
Let us look on
And listen in
On God’s great workshop
Of stars ... and eggs ...”

CARL SANDBURG. [\[14\]](#)

At the time of a recent presidential election, a straw vote was taken by the faculty of a midwestern college, which included the straw vote of thirty-five of the professors. Seven voted for Cox, twenty-five for Harding, and three for Debs.

Shortly afterwards an agitated citizen met one of the vote tellers on the street.

Said the citizen, “Is it so that three of the teachers voted for Debs?”

“Yes,” said the teller, “I counted the votes, and I know that three of the teachers voted for Debs.”

“Are they going to let them stay?” asked the agitated citizen.

“Twenty-five voted for Harding,” came the reply, “and they are going to let them stay.”

And with the years do not the implications, both ways, of that answer seem to have increased rather than diminished?

Here is Billy Sunday denouncing, in some of the mildest of his phrases, the radical,—in this particular case Eugene Victor Debs: “I’m dead against the radical in whatever form he may appear. He’s the bird I’m after. America, I call you back to God!”

And then this is the way Billy Sunday goes on to call America back to God: “These radicals would turn the milk of human kindness into limburger cheese and give a pole cat convulsions. If I were the Lord for about five minutes, I’d smash the bunch so hard—” but the remainder is too coarse to repeat.

So much for the generous and sensitive English of a reactionary Billy Sunday!

Here is the Radical Debs speaking in condemnation of the Bolshevistic use of power in the execution of the Czar and his family: “I recoil with horror and shame that such savagery should be committed in the name of Socialist justice that has for its aim and purpose the setting up of the higher standards of human conduct. I can find no extenuating circumstances that would allow me to take the life of my bitterest enemy.... We shall not wrest any justice or kindness out of life by emulating the practices of those whose barbaric method we now denounce.”

In one respect—possibly in several—society to-day is scientifically in advance of that public which some four hundred years ago killed Galileo because he performed a scientific experiment. And it does not make torches out of Christians for festal reasons on our “Roman” holidays.

But what happens when there is any attempt to perform a political experiment? What happens when men seek to educate other men by means of the soap box and literature in the possibilities of what they think would be better ways and better forms of government? The unstated reply to this question is the story of the end and the beginning at Sacco-Vanzetti Defense Headquarters.

The future will see that this case was a free-speech case. The present denies this. Are men to make progress in freedom of religious thought and speech? Are men to make progress in scientific ways, go forward in science, but in politics, in government, have no freedom? Who stood over Pasteur to tell him what he should do with his microscope? And yet over three hundred years ago men killed Galileo because he tried to perform experiments with falling bodies.

Some two thousand years ago the Roman people said, “It is more expedient that one man should die than the people should perish through the

corrupting influence of Jesus.”

A few hundred years earlier the multitude had put Socrates to death because he had said he did not believe in the gods the city believed in. In science, using scalpel and microscope, test tube and spectroscope, men are permitted to go forward. In government, in political science, is society to condemn all those men and women to prison in whom the spirit of research lives?^[15]

These are some of the questions being asked by intelligent minorities everywhere. And it is not impossible that as the result of those thirteen days in Boston intelligent minorities, whether liberal or conservative, were strengthened in purpose and confirmed in determination to see that at all costs should be tried the experiment of a free people governing themselves by means of free assemblage, free discussion, and legislation that should be just to all,—what Dr. Holmes has described as “the new mobilizing of conscience for the work ahead.”

“But,” the Popular Mind says, “the radical is dangerous.”

Is he? What, anyhow, is the Radical?

James Harvey Robinson writes in *The Journal of Philosophy, Psychology and Scientific Methods*: “Some mysterious unconscious impulse appears to be a concomitant of natural order. This impulse has always been unsettling the existing conditions and pushing forward, groping after something more elaborate and intricate than what already existed. This vital impulse, *élan vital*, as Bergson calls it, represents the inherent radicalism of nature herself. This power that makes for salutary readjustment, or righteousness in the broadest sense of the term, is no longer a conception confined to poets and dreamers, but must be reckoned with by the most exacting historian and the hardest-headed man of science.”

In art, at least, radicalism means that nuclear source from which spring the emotional and social evolution of art. And, one suspects, in the life of government its meaning is not so very different. When those in control of government begin to use dead forms of past experience—say, legal—because they are without sufficient force or sufficient idealism to create new forms of use to life as men must live it in the present, then follow injustice and tyranny and death. It is inevitable that selfish men should fear the change from one economic order to another. And when for over a hundred

years both the philosopher and the economist have buttressed the practical individual in believing that in pursuing his own good he is benefiting the community as a whole, it is small wonder that he insists on the righteousness of his individualistic or capitalistic point of view. It is unquestionably true, not alone in political ways but also in some official “religious” ways, that the execution of Sacco and Vanzetti had been greeted with exultation. John Hays Hammond’s letter of praise to Governor Fuller will be remembered. Bishop Lawrence’s letter to Governor Fuller will not be forgotten,—the congratulations of a Bishop of Christ for the decision to kill two men. What light do those “congratulations” throw on what many had believed to be the move for investigation on the part of liberal opinion?

For the present the power lies in the hands of individualists and reactionaries, and many social radicals—as, for example, Mooney and Billings—are in prison, or they have died from the hardships of their prison experience, or have been executed. The boggy of fear—since they are not conscience free—possesses many who are in power, and they find a thousand subtle ways to infect the public mind with fear of those changes which they themselves dread.^[16]

The execution at midnight on August twenty-second was no sudden and hideous grimace of fate. The preparation for this act of injustice was implicit in the history of over half a century. In an editorial in the *New Leader* for August 13, 1927, James Oneal wrote: “There comes a time in the history of nations when various phases of their development come to a focus and signify the need of change. The old order changeth and the new order issues out of the old. The old faiths, old views, old war cries that once served mankind no longer serve. They harden into prejudice and become the handmaids of reaction and despotism. They become imbedded in law, are sanctioned by courts, and become fetters on human progress. Eventually the fetters are broken, we enter a new epoch, mankind rejoices, progress continues until a new crisis is brought because new faiths, views and war cries have again become old.”

In this connection it might be well not only to remember Douglas and Dred Scott, John Brown and Abraham Lincoln, but also *not* to forget Mitchell Palmer and his relation to the so-called “Red Raids.” To give only one example, the Rand School books and furniture were destroyed by Palmer’s Cossacks of the law, and men and women thrown down stairs and out of

windows. It might still be well to do what the *Nation* recommended as far back as 1921: “Turn the Light on Palmer.” The files of the Department of Justice, opened on request for such a pitiable psychotic type as the wife-murderer Remus, are still to be opened to help in clearing the names of two innocent Radicals who have been put to death.

It is well *not* to forget that in 1920 Salsedo, the friend of Sacco and Vanzetti, was found smashed to pieces on the pavement fourteen stories below the offices of the Department of Justice on Park Row where Salsedo had been held *incommunicado*. Was Salsedo tortured till he went mad and sprang out of the window? Or was he thrown out? It should be remembered that Sacco and Vanzetti were trying to get up a meeting about what Alfred Baker Lewis has called Salsedo’s “highly curious death” when they were arrested. It is well not to forget that to-day out in the Colorado coal fields, in the interests of justice (!) peaceful picketers, having not even a club as weapon, have been shot down by mounted troopers, and that women are being lassoed by these guardians of the law as steers are lassoed. It is well to remember that men and women are thrown into prison without even the formality of a warrant, as Flaming Milka was after she had been lassoed and her wrist broken by the brutal snapping of handcuffs upon her.

Lincoln, facing the issue of the Dred Scott decision, said: “I believe that government cannot endure half slave and half free.” This was said at a time when the Supreme Court had decided that negroes could not be considered as persons but only as property. That race issue now has but passed a specious color line, is stalled on the political boundary, and has gone forward—if it has!—only to rephrase itself economically as to whether wage-earners are to be considered as persons or only as property. It would seem that there has been an attempt to answer the question in Colorado and Pennsylvania by the machine gun and state police.

Dr. Cohn implies in “Some Questions and an Appeal” that the consciousness of radicalism in this country has become synonymous with the consciousness of guilt. It is possible to change the words “has become” to the words “has been made.” It is well not to forget the Lusk law whose issues, although some of them have been officially “killed,” are by no manner of means dead issues. Despite the repeated courage of expressed opinion and action on the part of Alfred Smith as Governor of New York State, if the constitutional rights of Socialists cannot be barred openly, they

are still taken from them illegally at the polls and elsewhere. If there is no legal process by means of which teachers can be gagged by loyalty tests, other means as efficient, if less open, are being found. The question of the political control of all schools in the state by means of the Board of Regents may come up again, and assuredly will, if now dominant and selfish interests succeed in herding people into the war which looms so ominously on our horizon,—and not less so under the influence of President Coolidge's 1928 Armistice Day speech. And finally, the creation and maintenance of a police for the suppression of all forms of radicalism is now a fact and not a theory, however uncoded such action may be on any book of statutes.... Back in 1923 the *Outlook* said that Lusk's proposal attacked "the fundamental principle of free government—liberty of speech and of the press.... His proposal enlists against great names and great memories of the past—the learning of Milton, the piety of Jeremy Taylor, the satire of Voltaire, the eloquence of Lord Erskine. It denies the axiom of liberty, that error is dangerless so long as truth is left free to combat it."

To-day with a policy as consistent as it is fearless the *Outlook* says in the issue of November 14, 1928: "Because in the South Braintree case, and in the Bridgewater case that preceded it, it was not only Sacco and Vanzetti but also our administration of justice that was on trial. If that has failed us then we should know it. We cannot afford to regard any miscarriage of justice as a closed case. As we value the future safety of society, our own safety and the safety of our children, we must be ready to listen and learn."^[17] For these reasons *The Outlook and Independent* has reopened the case of Sacco and Vanzetti first by checking up on the Bridgewater hold-up, and second by checking up on the South Braintree crime. It is now at work on the latter.

In the issue of October 31, 1928, were published the signed confession of Frank Silva who states that he and three others attempted the Bridgewater hold-up, and corroborative evidence signed by James Mede who helped plan the crime although he did not take part in it. In order to substantiate the story further, Silas Bent and Jack Callahan took James Mede and Frank Silva to Boston where in an automobile they rehearsed again the crime. After their evidence was complete, Silas Bent took it to Boston to ask Mr. Thompson whether the attorneys for the condemned men were ignorant of

the facts brought out in the two confessions, or whether knowing the story, they did not believe it.

In the issue of November 7, 1928, Silas Bent gives a long and valuable interview with Mr. Thompson in which the latter tells of Mr. Moore's attempt to interest Governor Cox in James Mede's story while James Mede was in the state prison in 1922; of a meeting with James Mede after his release from prison while Mr. Moore was still counsel; and of a meeting with James Mede in July, 1927, when he begged James Mede to make a clean breast of what he knew.

On July 12, 1927, James Mede made a complete disclosure to Governor Fuller after he had been assured that his confession would not be communicated to the state police as he feared the revocation of his license for boxing matches. After it, Governor Fuller called in Captain Blye of the state police, asking Mede to repeat his confession to Captain Blye alone, but indicating "hostility to Mede by words, tone and manner." James Mede became terrified and refused not only to talk with Captain Blye alone but to repeat his story to the advisory committee, which had already indicated "unwillingness to consider the Bridgewater case."

In August James Mede was urged to make another attempt to save Sacco and Vanzetti. He went to the office of Captain Blye with Dr. Santosuosso, and offered to make a full confession but his information was refused. Thus, according to *The Outlook and Independent*, for five years officials in Massachusetts declined to investigate James Mede's story. Not only did Mr. Thompson and Mr. Ehrmann know the facts regarding James Mede and Frank Silva but they urged the interview with Governor Fuller and sent both to Governor Fuller and the advisory committee a letter, dated June 15, 1927, in which was marshaled all the available evidence bearing on the relation of these two men to the Bridgewater crime. Mr. Thompson makes clear his belief that James Mede told the truth, and he states that the conviction of Vanzetti in the Bridgewater hold-up not only removed from everybody's mind the presumption of innocence but created a presumption of guilt both against Vanzetti and his friend and associate, Sacco.

The Outlook wrote, "We must be ready to listen and learn." The men are dead but the issue of justice—that placard repeated and repeated on the walls of the Defense Committee's offices, JUSTICE IS THE ISSUE—is not dead.

There are many who believe that even from the technical legal point of view the case for Sacco and Vanzetti is not closed. Still more know, as well as believe, that not only has this issue of justice *not* been killed with the two men but rather that the idea of justice has been given a new increase of life.

This power of an idea was brilliantly illustrated in the October, 1927, number of *The World To-morrow* when under the caption of “Fathers and Sons” without a line of comment, its editors set the following last sentences side by side:

Sacco’s Good-by to His Son

“My son, do not cry. Be strong to comfort your mother. Take her for walks in the quiet country, gathering wild flowers, resting beneath shady trees, and visiting the streams and the gentle tranquillity of the Mother Nature.

“Do not seek happiness just for yourself. Step down to help the weak ones who cry for help. Help the persecuted, because they are your better friends. They are your comrades who fight and fall, as your father and Barto fought and fell, to conquer joy and freedom for all the poor workers.”

Gary’s Advice to His Heirs

“I earnestly request my wife and my children and descendants that they steadfastly decline to sign any bonds or obligations of any kind as surety for any other person or persons: that they refuse to make any loans except on the basis of first-class, well-known securities, and that they invariably decline to invest in any untried or doubtful securities or property or enterprise or business.”

The power of the ideal life has within these recent years found among others a symbolic figure in Eugene Victor Debs. Upon our entrance into the World War Debs, even as did Sacco and Vanzetti, upheld pacifism, and in September, 1918, he was charged with violation of the Espionage Act, and sent to prison.

Debs would have nothing to do with that type of Christian hypocrisy which flourishes a Sermon on the Mount in one hand while it operates a machine gun with the other. Because of his pacifism, this “radical” Gene Debs, always so fair and so gentle as an opponent, hating no one, incapable of petty hatreds, was sentenced to spend ten years in Atlanta Penitentiary.

While he was in Atlanta, he heard of the negro, Sam Moore, shunned and feared by all, and confined in the dungeon for a brutal murder. Debs asked

to be taken to him; and when he was, he went up to this man whom no one dared approach and put his arm around him. Emerson has said, "The only gift is a portion of thyself." This gift Sam Moore received from Debs, and it made a different man of that negro, changing him from one who was shunned by all into one who was trusted. And it was that same despised negro criminal who said, "Gene Debs is the only Jesus Christ I ever knew." Sam Moore is out now, leading an upright, working life. Debs spent three years in Atlanta Penitentiary, trusted and beloved. Then on Christmas Day, 1921, President Harding released him.

This is a brief record of the activities of the man who was five times nominated for President of the United States, one of those times being while he was in prison when he polled a vote of almost a million. This is the man who addressed audiences numbering 25,000, and who led the simple, loving life of a modern Christ; and who, after two years of study, became at the age of forty-two a Socialist. For Debs socialism did not mean the doing away with capitalism; it meant, rather, capital socialized, the brutality, the devastating individualism taken from it,—a system of living in which man's sociality, his brotherhood, would be furthered, in which there would be no bitter and separating contrasts between rich and poor.

It was this Debs who said, "While there is a lower class, I am in it; while there is a criminal element, I am of it; while there is a soul in prison, I am not free."

It was this man of simple and genuine American traditions, born in an American family in an Indiana town, a Socialist, of whom the anarchist Vanzetti said in that last public speech he was to make: "There is the best man I ever cast my eyes upon since I lived, a man that will last and will grow always more near to and more dear to the heart of the people, so long as admiration for goodness, for virtues, and for sacrifice will last. I mean Eugene Victor Debs."

Vanzetti was not to hear Aldino Felicani saying of himself and Sacco, "Ah, these are the very best men I must ever hope to know!"

It is a truism that what a man is, what he does, in his own lifetime influences his fellow men. The miracle of influence does not lie in that fact. The miracle of influence lies, rather, in the continued life of influence after the death of the individual who has exerted it. In this is found the dynamics

of an idea,—directed energy released by means of an idea which controls social and moral movements, hundreds of years, thousands of years, after its release,—a poem thousands of years old to which the heart and mind of man still answer; or a Messiah whose gospel becomes more potent with the marching centuries. It is because he possesses such influence, great in a lifetime, but in death potentially greater than in life, that the idealist, whether he be liberal or conservative or radical, is, and always will be, dangerous.

The lives of Sacco, Vanzetti, and Debs define, without words, the significance, the character, and the service of the so-called “radical.” In symbol the influence of these three, and the influence of other idealists, will have more and more power as the years go on,—not greatness gone or greatness vanished, but greatness growing, widening out forever, their names already known to millions of human beings the world over, inspiring symbols of courage and of loving-kindness. And in such symbolism lies the miracle of human influence and its immortality.

In pursuit of the ideal such radicals as Debs, Sacco and Vanzetti know no fear. For them in the achievement of ideal ends no cost is too great, neither slander nor loneliness, the loss of the means of subsistence or of life itself. There is only one loss which the idealist, whether he be conservative or liberal or radical, can mourn, and that is the lost opportunity to speak for those who suffer and are wronged, as Sacco and Vanzetti did suffer and were wronged. That is why, to use the words of Powers Hapgood, hundreds of thousands in protest of one sort or another want to “stand up and be counted.” And, too, as the years go on this is why as symbol in ever-widening circles of influence the work of the Defense Committee, the courage of brave friends, as well as the martyrdom of Nicola Sacco and Bartolomeo Vanzetti, over seven long years, and the conflict and defeat of those last thirteen days, will become greater and greater in men’s eyes.

Ralph Chaplin, who spent five years behind prison bars because he was and is a man of peace, has in a poem expressed this courage of the idealist:

“Mourn not the dead that in the cool earth lie—
Dust unto dust—
The calm, sweet earth that mothers all who die
As all men must;

Mourn not your captive comrades who must dwell—

Too strong to strive—
Each in his steel-bound coffin of a cell,
Buried alive;

But rather mourn the apathetic throng—
The cowed and the meek—
Who see the world's great anguish and its wrong
And dare not speak!"

FOOTNOTES:

[14] "Good Morning, America," by Carl Sandburg, p. 26.

[15] For brilliant discussion of political freedom v. "Some Problems of Progress," by Professor H. M. Dadourian of Trinity College in *The Scientific Monthly*, edited by J. McKeen Cattell, October, 1922.

[16] As an illustration of terms to which such "fear" will stoop see [Appendix A](#) and [Appendix B](#).... These appendices discuss a few of the recent notable forces working against freedom of speech.

[17] The series of articles bearing on the case which have been published by the *Outlook and Independent* so far is as follows:

"Fear," by Edna St. Vincent Millay, November 9, 1927.

The Outlook and Independent, October 31, 1928.

"The Truth About the Bridgewater Hold-up," p. 1053.

"Frank Silva's Story," p. 1055.

"How I Found Frank Silva," by Jack Callahan, p. 1060.

"Checking Up the Confession," by Silas Bent, p. 1071.

"The Bridgewater Trial," p. 1076.

The Outlook and Independent, November 7, 1928.

"Checking Up the Vanzetti Story," by Silas Bent, p. 1099.

The Outlook and Independent, November 14, 1928.

"Bridgewater and After," p. 1163.

APPENDIX A

About the year 1920 to 1921 the “Blue Menace” began to use its three arms of power: the secret service, a hired police, and signed and unsigned propaganda against what the “Blue Menace” called the “Red Menace.”

While Calvin Coolidge was vice president of the United States the public had under Mr. Coolidge’s signature in the *Delineator* for June, 1921, the first of a series of three articles on “Enemies of the Republic” with a sub-caption of “Are the Reds stalking our college women?” This happened to be the third year of Debs’ term of ten years in Atlanta Penitentiary.

It would seem that Mr. Coolidge signed these articles on the Red Menace but did not write them. Vassar, Barnard, Wellesley, Radcliffe, and other women’s colleges were “hotbeds of Bolshevism,” etc. But “Smith Seems Sane,” and Mount Holyoke and Bryn Mawr escaped slashing by signature altogether. A “Miss Smith” of the Vassar faculty—too apparently the entire Smith family could not claim sanity!—had offended Coolidge democracy by being favorably impressed with the liberalism of the Soviet ambassador in Washington. Naughty Miss Smith! “Democracy” as defined by Mr. Coolidge is an over-lord who can do no wrong. And on the terms of such a definition, in the third of these articles he proposed this “Coolidgism”: “When a college professor is disloyal to the government he is no longer a college professor.” Query: What is he? This question the Poor Professor himself sometimes alters nowadays to read: Where am I?

Studious, scholarly Dr. Harry Laidler of the League for Industrial Democracy had, according to the Vice President, been raising the sort of sulphurous dust in the women’s colleges to which perfect ladies do not refer. A certain Vida Dalton (Dutton?) Scudder, professor of English literature at Wellesley, had offended by suggesting in the *Socialist Review* in an article with the title “Socialism and Character” (a vicious title because such a conjunction is impossible of course!) that Christianity was being exploited for purposes not exactly Christlike. It would seem that this is a thought that has occurred to others, too. Freda Kirchwey had erred by showing a “Williams boy” that Barnard women could define socialism. In

addition to all this—*ab urbe condita* horror of horrors!—"a Mary Calkins, professor of philosophy" (she is said to have voted for Debs for President at the recent election) was guilty of "the creed of Internationalism." Run in on the same page (67) of that issue where the vice president stopped was a short story, and a loitering eye stopped beside this phrase: "'Oh, little Eve,' a sob caught in her own throat, 'love never dies.'" Usually the month they are born that kind of love and story do die. But the kind of love at the heart of Internationalism seems to have spread from its groups of brave pioneers, among whom was "a Mary Calkins," and become a world-wide movement.

In the next article for July the "Coolidgisms" continued. The first article had been illustrated by a grandmotherly looking wolf, spectacles on nose—the better to see you, my dears!—and some plump little lambs among which all college women will recognize themselves instantly. But this second article has the picture of a thoughtful young man resting elbow on desk, and resting coiled upon his shoulder is a hooded cobra. Behind the cobra is a phantom-like figure—evidently in the minds of Mr. Coolidge and the illustrator intended to be a menacing figure. It is, rather, for the phantom looks as if under one interpretation of democracy he had had to stand too long on an American bread-line.

In this issue Dr. Harry F. Ward of Union Theological Seminary and the Rand School came in for special attention, one of the "Coolidgisms" being that "the good is never self-existent." An aspect of this "Coolidgism" which has, perhaps, not occurred to Mr. Coolidge, is that idealists—all too many for a "free" democracy—are having to prove their devotion to the ideal all too often in prison. Some of the themes of the same issue are "Red Pedagogy," our public schools, and "Trotsky vs. Washington." And the article closes under the caption: "In Truth our Freedom Lies." This moral fiat will bear looking at twice, and may cause amusement or discomfort to those who penetrate its sinister inversions.

The third article in the August issue, also we understand "collected" for Mr. Coolidge and then signed by him, has a heavy muscular young woman seated on the prostrate back of a Russian bear whose tongue is lolling out helplessly as she jabs a two-edged sword down through the back of Brother Bear. Study of the young woman's features, her figure and her draperies, suggests that she has just stepped down from the Statue of Liberty in order to take this firm seat. Whether the bear is *de facto* or not the Soviet

government, there are some weak “radicals” who may find both the young woman and the sword of “righteous authority” a bit brutal, or at least lacking in Franciscan symbols of Christianity.

“Righteous authority” is the pivot thought on which this third and last article in the *Delineator* by Calvin Coolidge is swung. During many years now Mr. Coolidge has wielded supreme authority in the United States, among other acts carrying on an unauthorized war against Nicaragua, and lending his silence, if not his articles, to an unauthorized man-hunt not only for Sandino outside the confines of the United States, but also for brave liberals in the schools, the colleges, the churches, and the labor organizations, who dare to interpret the truth in the developing formulæ, political as well as educational and religious, of a developing humanity.

APPENDIX B

There is one address comment upon which it would be my wish to omit from any summary of forces working against freedom of speech. The man who gave this address in Lawrence, Massachusetts, on June 30, 1927, to the Kiwanis, is himself kind to little children. He has been thoughtful of their welfare both in legislation and control; eager for the safety of the road and for the reduction of needless human suffering. But the author of this address, which appeared first in the *Boston Traveller* for June 30th and of which afterward some seventy-five thousand copies were printed for distribution, leaves the student of these issues no honorable choice except to analyze the speciousness of his statements.

Frank A. Goodwin begins this address, which is said to have turned the tide of public opinion—the tuning fork from which Governor Fuller took his pitch—with an implied compliment on the Lawrence handling of the strikes and the “Red murderers” who had been at that time in action. Having established an association between the character of what the Kiwanians had seen in Lawrence and Sacco and Vanzetti whom they had not seen, Mr. Goodwin then took about one hundred and fifty words out of the context of a speech by Edward H. James, the nephew of William James, which had been given at Winter Garden in Lawrence on May 27th. Mr. Goodwin refers to these words which, however bravely meant, inevitably would be prejudicial in conservative eyes, as coming from the “Socialist or Red.” Since when have Socialists and Soviets been hand in glove? If they have been, then the altogether delightful “glove” the Socialists have received in Russia has been wholesale imprisonment! This is the first of those inaccuracies with which this pamphlet teems, and on the basis of which public opinion was still further influenced.

The Socialists have themselves been time and again “broken” by the *status quo*. But in turn as a political party they have broken nothing,—not even the driest twig of government, for their ways are the slow constitutional ways of education and legislation. But now, as far as Frank Goodwin’s audience was concerned, he had tied together “Red murderers” in the Lawrence

strike, a nephew of William James, socialism, Soviet Russia, and two philosophic Anarchists. Breaking all the speed laws of reasoning, Mr. Goodwin then established the guilt as murderers of Sacco and Vanzetti, sideswiping, as he did so, “pacifists and their college professor allies” in preventing murderers “from getting their just deserts.” Stepping on the gas, and traveling at the rate of a Studebaker “Sheriff,” Mr. Goodwin whizzes down on Professor Felix Frankfurter, Anita Whitney, Mooney and Billings, the American Civil Liberties Union, R-revolution (!), and a few other road obstructions.

By this time Mr. Goodwin is getting his car so well in hand that it will take almost any fence. He hurdles California, skids as he reaches “some ministers of the Gospel,” rights himself, and lands squarely in the midst of the “Lusk Investigating Committee” where he was really at home. All might have been well, but pulling out the throttle, the then Registrar of Motor Vehicles goes roaring forward onto a paragraph with the caption of “WHOSE BRAINS GUIDE.” In this little paragraph, with his careful use of words, he rolls James Maurer, tosses “the notorious Elizabeth Gurley Flynn,” Dean Roscoe Pound, and a few tender little Socialists like Morris Hillquit, Scott Nearing, Norman Hapgood, Upton Sinclair, ricochets on Professor Frankfurter, and goes smash into Roger Baldwin, William Z. Foster, and Lenin.

His Sheriff being provided with a wonder-working bumper, despite collision on he goes, though in exactly the opposite direction. Neither geography nor the direction in which Mr. Goodwin is now going is any longer a matter of importance to him. He happens to be in the Connecticut Valley but does not know it! For just ahead he has seen a group which he calls “College Professors Reds,” and he is in full flight. Mr. Goodwin shows his genuine Americanism by baiting the college professor, the worm of our national wit. What is more the “professors” here excoriated are in the leading colleges for women. But it is a long worm that has no turning, and apparently these poor down-trodden things have turned. It would seem they are making a direct assault on the human family, for Mr. Goodwin writes:

“Another obstacle is the home and the family, and a widespread assault is now being made on the sanctity of marriage and sacred family relations, and it is being made with great success in the leading colleges for women, and small wonder, for we find the presidents and professors of most of them members of the Baldwin-Foster committee, or its allied organizations.”

Exactly what is this Baldwin-Foster Committee to which Mr. Goodwin refers with such precision? But no matter, and there you are, all tied up again and together: the “promiscuity” of our women’s colleges and college women in general, and Sacco and Vanzetti. Pulling out the choke of his trick car Mr. Goodwin rushes up over the Amherst Notch, screeching through Old Hadley, making a record run down upon the Hankins questionnaire in Northampton. He wrenches a few of this college instructor’s misguided questions altogether out of their context, thereby subverting their sociologic intention. Waving these questions indignantly, Mr. Goodwin honks out this paragraph:

“It may be interesting to note that almost 100% of the presidents and teachers in these colleges for women have signed petitions for the release of Sacco and Vanzetti. It might be well before long for the various states to found and support colleges for women where decency and morality will be taught.”

Those who have taken a prurient interest in the questions selected by Mr. Goodwin would do well to read the entire questionnaire. However much the keen scholar who is at the head of Smith, and Mr. Hankins himself, and other college professors, and presidents, may have regretted what seems a lack of judgment shown in a few of the questions asked, those who read the questionnaire as a whole will get, not the false perspective of Mr. Goodwin’s methods but a true perspective of the whole sociologic enquiry. And in conclusion, what in the world is the connection between a class questionnaire and the Sacco-Vanzetti frame-up?

At the top of page 11 the Sheriff had grazed Dr. S. Parkes Cadman. This was unfortunate, for now Mr. Goodwin, for reasons no one can understand, Dr. Cadman least of all, is headed directly upon the Garland Fund. He now charges Robert Morss Lovett, Lewis Gannett, Norman Thomas, Roger Baldwin (of course!), the Fellowship of Reconciliation, the Fellowship of Youth for Peace, and returns to the Federal Council of Churches and Emma Goldman. This return must surprise many, including Emma Goldman herself. Since when has her association with the Federal Council of Churches been established as even the remotest possibility? Mr. Goodwin is now going at a record-breaking pace. Two-thirds down the page, his car fairly leaps into the air, and the one-time Registrar of Motor Vehicles is heard speaking these words:

... “The time has come to stop treating this thing as a joke. An organized minority, bent on evil, cannot be ignored, when led by desperate, unscrupulous, able men, with

unlimited money, and particularly when aided, regardless of their motives, by those who control our colleges, and the Federal Council of Churches.”

Mr. Goodwin, now being profoundly stirred, is at his best in such penetrating remarks as this: “An organized minority, bent on evil.” Will some of the members of the Federal Council of Churches, Dr. Cadman and Bishop McConnell, for example, please step forward and explain why they are so naughty! And after they have been heard, will a judicious selection from the Presidents of the demoralized colleges for women, President Neilson, President Woolley, President MacCracken, please explain to an anxious public why, despite the fact that no one of them is even that mildest of all “Reds,” a constitutional Socialist, they are always called “Red”? Is the *Manchester Guardian Weekly* right when it says: “There are, perhaps, too many societies of one sort or another in the world already, but there seems to be a real need for one addition—a Society for the Protection of Good Americans from the Publicity which is Awarded to the Others.” Surely, no matter what Mr. Goodwin and some thousands among other notable groups such as the Daughters of the American Revolution owe them, by way of apology, the college presidents must understand that they owe the public a pleasant explanation for the reasons why Mr. Goodwin and others should be allowed to slander them.

But the Registrar of Motor Vehicles and his Sheriff are growing tired. Despite the fact that up and down several pages he has been scooping the Connecticut Valley, Mr. Goodwin failed to refer to Waldo Cook and the *Springfield Republican*, and none have done more valiant service for freedom of speech and justice than these two. With weariness there comes upon Mr. Goodwin the meditative spirit. He is slowing down; he is going to shut off his motor; and one of the boldest drives to demolish truth ever undertaken is almost over,—certainly since the Mitchell Palmer, Lusk and *Delineator*-Coolidge days. As he dreams, peaceful voices are heard, and he invokes the American Legion, Veterans of Foreign Wars, Spanish War Veterans, and other such non-militant (!) organizations. Reaching the last page all are found joining hands with the Daughters of the American Revolution. It is a pretty picture of accord, except for the fact that one is left wondering whether even the genial Daughters would have quite enough hands to go around....

In her series of “Blue Menace” articles which appeared in the *Springfield Republican* from March 19 to 27, 1928, ^[18] Elizabeth McCausland has given clearly the factors which lie behind the so-called “blacklists” and the final outbursts of the D.A.R.: the activities of the Palmer deportation raids, the Lusk legislative committee, the Key Men of America, the Industrial Defense Association with Headquarters at Boston, the Massachusetts Public Interests League, together with the activities of many other reactionary organizations, whose use of data was often as inaccurate as it was reactionary.

Is it on the basis of such carefully compiled data as these by Mr. Goodwin that the public is to draw its conclusions with regard to the value of the service of our educational and religious organizations, and with regard to the guilt or innocence of Sacco and Vanzetti? In such material as that cited is the level of a primitive mentality, the taboos and spooks, specters and witch doctors of savages,—in short a reversion to physical levels down to which graft and greed, selfishness and sensuality, are fast taking the American public. Is it this senescence of the reasoning power that is to convince people at large that idealists—sneered at by the business interests of the country—in education and religion and government are murderers and criminals?

FOOTNOTES:

^[18] Now compiled in pamphlet form under title of “The Blue Menace,” and published by the *Springfield Republican*. Price 10 cents.

APPENDIX C

This list represents the first five hundred protestants who replied by wire or letter to letters or telegrams sent out by Paul U. Kellogg, editor of *The Survey*. The letters and telegrams which went out to the large list bore the following signatures: Jane Addams, Frederic Almy, Charles A. Beard, Bruce Bliven, Charles C. Burlingham, Waldo Cook, John Dewey, John Lovejoy Elliott, Haven Emerson, Ernest Freund, Alice Hamilton, Norman Hapgood, Paul U. Kellogg, Dora Lewis, Margaret Homer Shurtleff, Henry R. Seager, Mary E. Woolley. In many cases replies were received from summer homes and resorts. This list is here given alphabetically, but, except where the names occur in the text of "Thirteen Days," these names are not listed again in the Index.

Abbott, Miriam	Worcester, Massachusetts
Abby, M. J.	Colorado Springs, Colorado
Adams, Lida S.	Whitefield, New Hampshire
Addams, Jane	Chicago
Allen, Mary L.	Cambridge, Massachusetts
Almy, Frederick	Buffalo
Amberson, Wm. R.	University of Pennsylvania
Amidon, Beulah	New York City
Amidon, Charles F.	Fargo, North Dakota
Andrews, Esther	New York City
Antin, Mary	Great Barrington, Massachusetts
April, Reba	Chicago
Arms, Katharine Fuller	Greenfield, Massachusetts
Arthur, Katharine	Philadelphia

Arthur, Mary

Aub, T.

Philadelphia

Huntington, New York

Bailey, Forrest

Baker, Edith M.

Baldwin, Ruth Standish

Ball, Steadman

Barasch, William

Barbour, Elizabeth

Barbour, Violet

Barnard, Anne

Barry, Grace

Bass, Basil N.

Beard, Charles A.

Beard, Charles R.

Bearse, Mary

Beck, Dr. and Mrs. F.

Beck, Isabel, Dr.

Belson, Heinrich

Bemis, Evelyn

Bergmann, Henry H.

Bernstein, Sadie

Bigelow, Francis Hill

Binger, Dr. Carl A. L.

Binger, Clarinda G.

Bingham, G. W.

New York City

Northampton, New Hampshire

Gloucester, Massachusetts

Topeka, Kansas

Brooklyn, New York

Poughkeepsie, New York

Poughkeepsie, New York

New York City

Ashland, New Hampshire

New York City

New Milford, Connecticut

New York City

New York City

Asbury Park, New Jersey

Asbury Park, New Jersey

Brighton, Massachusetts

New York City

Washington, D. C.

Chicago

Cambridge, Massachusetts

New York City

New York City

Boston

Birchard, C. C.	New York City
Birtwell, Frances M.	Cambridge, Massachusetts
Bliven, Bruce	New York City
Blumberg, Dorothy	Brooklyn, New York
Blumberg, Philip	Brooklyn, New York
Bockius, Elizabeth G.	Whitefield, New Hampshire
Bockius, Frances G.	Whitefield, New Hampshire
Bollman, Mary	Woodstock, New York
Bontecou, Eleanor	Cambridge, Massachusetts
Boretz, Mary E.	New York City
Bradford, Esther	Philadelphia
Bradford, Robert	Philadelphia
Brenk, Deltev W.	Swarthmore, Pennsylvania
Bronfenbrenner, Jacques	Rockefeller Institute
Brown, Geoffrey C.	East Orange, New Jersey
Brown, William T.	Cleveland Park, D. C.
Brubaker, Howard	South Norwalk, Connecticut
Bucek, Mary L.	Medford, Massachusetts
Burlingham, Charles C.	New York City
Byrns, Elinor	St. George, New York
Calkins, Charlotte W.	Newton, Massachusetts
Calkins, Mary	Newton, Massachusetts
Canfield, H. L.	Woodstock, Vermont
Caplan, Frances R.	Bridgton, Maine
Capon, Ruth J.	Framingham, Massachusetts

Carner, Lucy	Ogunquit, Maine
Case, Mary S.	Dorset, Vermont
Cattell, J. McKeen	Garrison-on-Hudson, New York
Cattell, McKeen	Cornell Medical School
Chamberlain, J. E.	Boston
Chambers, Robert	Cornell Medical School
Chappell, A. W.	New York City
Chase, Robert S.	Boston
Chase, Mrs. Robert F.	Boston
Clark, Sue Ainslee	Walpole, Massachusetts
Clement, Sumner	Boston
Clumberg, Edith	Brooklyn, New York
Codman, John S.	Boston
Codman, Margaret	Ashland, New Hampshire
Coit, Eleanor	New York City
Coleman, Mrs. George W.	Boston
Collettireina, Ignacius, M.D.	New York City
Collettireina, Marie, M.D.	New York City
Collington, D.	Philadelphia
Collington, F.	Philadelphia
Commons, John R.	Madison, Wisconsin
Conant, M. P.	Boston
Connell, Dinah	Chicago
Converse, Florence	Wellesley, Massachusetts
Cook, Waldo	Springfield, Massachusetts
Cooperman, Abe	Chicago

Cowan, Sarah	New York City
Cowing, Agnes	New York City
Crouch, F. M.	Rye, New York
Cunningham, Helen	New York City
Curtis, Isabelle	Ashland, New Hampshire
Curtis, W. C.	University of Missouri
Cushman, Joan	New York City
Darr, John W.	Northampton, Massachusetts
Davidson, C.	Colorado Springs, Colorado
Davies, Anna	Philadelphia
Davis, Anna N.	Boston
Davis, Grace D.	Hyannis, Massachusetts
Davis, Helen M.	Hyannis, Massachusetts
Davis, Janet	Magog, Quebec
Davis, Lucy	Hyannis, Massachusetts
Davis, Martha M.	Hyannis, Massachusetts
Davis, Michael M., Jr.	Magog, Quebec
Day, Elizabeth R.	Cambridge, Massachusetts
Day, Hilbert F., M.D.	Boston
Deardorff, Neva R.	New York City
Devine, Edward T.	New York City
Dewey, Boris	New York City
Dewey, John	New York City
Dexter, Smith O.	Westport, Massachusetts
Dorsch, Anna	Wakefield, Rhode Island

Drake, E. H.	Brooklyn, New York
Drew, Medora	New York City
Drown, Rev. Edward S.	Cambridge, Massachusetts
Drown, Mrs. Edward S.	Cambridge, Massachusetts
Dun, Rev. Angus	Cambridge, Massachusetts
Dunn, O.	New Brunswick, New Jersey
Dutcher, Carolene	New York City
Dutcher, Elizabeth	Brooklyn, New York

Eddy, Sarah J.	Portsmouth, Rhode Island
Edsall, Pendleton Kennedy	Boyce, Virginia
Elder, E. D.	Baltimore, Maryland
Elliott, James W.	Duxbury, Massachusetts
Elliott, John Lovejoy	New York City
Elliott, Martha H.	Duxbury, Massachusetts
Ellis, Mabel Brown	New York City
Emerson, Haven, M.D.	New York City
Emmons, M. D.	Jamestown, Rhode Island
Estabrook, Emma F.	Brookline, Massachusetts
Estabrook, Harold K.	Brookline, Massachusetts

Farnam, Henry W.	New Haven, Connecticut
Farnam, Mrs. Henry W.	New Haven, Connecticut
Farnam, Louise, M.D.	New Haven, Connecticut
Farr, Albert	Madison, New Jersey
Feder, Leah	New York City

Feigus, L.	Brooklyn, New York
Fenningston, Sylvia	New York City
Ferrari, F.	New Haven, Connecticut
Field, Mrs. H. H.	Cambridge, Massachusetts
Fishelman, B.	Brooklyn, New York
Fitch, John A.	New York City
Forbes, Howard C.	Cambridge, Massachusetts
Forbes, Mr. and Mrs. J.	Yonkers, New York
Forbes, J., Jr.	Yonkers, New York
Forbes, Mrs. J. Malcolm	Boston
Frank, Virginia	Chicago
Franklin, Adele	Kingston, New York
Freund, Ernst	Chicago
Fried, Fanny	New York City
Friedman, H. M.	New York City
Fuller, Anne C.	Greenfield, Massachusetts
Fuller, Elizabeth	Greenfield, Massachusetts
Fuller, Mary W.	Greenfield, Massachusetts
Fuller, Raymond G.	White Plains, New York
Gallagher, Rachel	West Lebanon, New York
Gannett, Lewis S.	New York City
Gans, Mrs. Howard S.	New York City
Garside, M.	Poughkeepsie, New York
Gasponi, M.	Pittsburgh
Gemberling, Adelaide	Princeton, New Jersey

Gibbs, Howard A., M.D.	Boston
Gilbert, Dorothea	New York City
Gilley, Dr.	Southwest Harbor, Maine
Gilman, Dr. J.	Brooklyn, New York
Gilson, Mary B.	Woodstock, New York
Glusker, Albert	Chicago
Gold, Archibald	Asbury Park, New Jersey
Goldthwaite, Anne	New York City
Goldthwaite, Lucille A.	New York City
Goldthwaite, Lucy	New York City
Goldwater, Clara A.	Huntington, New York
Goldwater, S. S.	Huntington, New York
Goodenough, Carolyn	North Rochester, Massachusetts
Grady, Alice H.	Boston
Grain, V.	Brooklyn, New York
Grave, B. H.	Wabash College
Green, Ada E.	Bridgton, Maine
Gretsch, Laura	Asbury Park, New Jersey
Gretsch, Vera	Asbury Park, New Jersey
Gruening, Mrs. Dorothy Smith	Portland, Maine
Gunterman, B. L.	New York City
Guy, Alma I.	New York City
Guy, David	New Haven, Connecticut
Guy, Florence	New Haven, Connecticut
Guy, Seabury	New Haven, Connecticut

Hamilton, Alice, M.D.	Boston
Hamilton, Edith	New York City
Hamilton, Maud M.	New York City
Hanson, Eleanor	Pittsburgh
Hapgood, Hutchins	New York City
Hapgood, Norman	New York City
Hardy, May Caroline, Jr.	Boston
Hart, Henriette	White Plains, New York
Hartshorn, Cora	Shorthills, New York
Hawkes, Abigail T.	New York City
Hays, Arthur Garfield	New York City
Hechtman, Eva	Chicago
Heinzen, R. Prang	Rockport, Massachusetts
Henken, M.	Brooklyn, New York
Hentel, Celia	Bridgton, Maine
Herring, Hubert C.	Boston
Herwig, Rammett	New York City
Herzog, Adrien Blanchard	Lenox, Massachusetts
Hicks, Mary	Bainbridge, Georgia
Hicks, Mildred	Bainbridge, Georgia
Himwish, A. A.	New York City
Hirsch, Elizabeth	Chicago
Hocking, W. E.	Cambridge, Massachusetts
Hodder, J. A.	New York City
Hodder, Thelma D.	New York City
Hodge, H. H.	Wyoming, Pennsylvania

Hoffman, Daniel	Asbury Park, New Jersey
Hoffman, Daniel, Jr.	Asbury Park, New Jersey
Hoffman, Frances	Asbury Park, New Jersey
Hohman, Martha	New York City
Hollsmith, Elise	Danbury, New Hampshire
Holmes, Hector	Boston
Holton, James C.	Brooklyn, New York
Hooker, George E.	Chicago
Hoover, Ellison	New York City
Hopson, Elizabeth Fuller	Wilkes-Barre, Pennsylvania
Hosmer, Katharine	East Hartford, Connecticut
Hotson, J. Leslie	Cambridge, Massachusetts
Hotson, Mary May	Cambridge, Massachusetts
House, Florence	New York City
Howland, Harold	Greenfield, Massachusetts
Hume, Edward H.	New York City
Hunt, Elizabeth P.	Haverford, Pennsylvania
Hunt, Irwin	Wyoming, Pennsylvania
Hunt, Lydia	Wyoming, Pennsylvania

Ingraham, Aimee W.	Boston
Ingram, Frances	Louisville, Kentucky

Jablonower, Joseph	New York City
Johnson, Mrs. Edward J.	Winchester, Massachusetts
Johnson, Lillian	Springfield, Massachusetts

Johnston, Alice A.	New York City
Johnston, Dorothy R.	Boston
Just, E. E.	Howard University, Washington, D. C.
Kahn, Dr. Jerome L.	New York City
Kahn, Mrs. Jerome L.	New York City
Kaufman, Anna	New York City
Kelley, Nicholas	New York City
Kellogg, Paul U.	New York City
Kelsey, Paul H.	Brookline, Massachusetts
Kennedy, Luna E.	Philadelphia
Kennedy, Marie E.	Woodstock, New York
King, Anna	Woodstock, New York
Kirshaw, J. E.	Cambridge, Massachusetts
Kirshaw, S. S.	Cambridge, Massachusetts
Klahr, Emma	Whitefield, New Hampshire
Kneeland, Hilda	Spofford, New Hampshire
Koenig, Caroline	Brooklyn, New York
Koenig, Herman	Brooklyn, New York
Kohn, C. Marion	Philadelphia
Kohn, Estelle Rumbold	New York City
Kraus, Louise H.	New York City
Ladd, Ailsie T.	Lancaster, New Hampshire
Ladd, Mary E.	Lancaster, New Hampshire

Lakeman, Mary R.	Swampscott, Massachusetts
Lamonte, C. B.	Byefield, Massachusetts
Lancefield, D. E.	Columbia University
Lancefield, R. C.	Rockefeller Institute
Lane, Lenore	Hampton, New Hampshire
Lane, Sarah	Hampton, New Hampshire
Lane, Wheaton	Hampton, New Hampshire
Lathrop, John Howland, D. D.	New York City
Lazar, B.	Brooklyn, New York
Lazareff, B. G.	Chicago
Lazareff, Elizabeth	Chicago
Lazareff, Luba	Chicago
Lazzari, Elizabeth Paine	New York City
Lee, H. H.	Auburndale, Massachusetts
Leonard, Edith	North Rochester, Massachusetts
Leroyer, J.	Boston
Levy, Clara D.	Bridgton, Maine
Levy, David	Bridgton, Maine
Lewis, Mrs. Dora	Philadelphia
Lockett, Elizabeth	Provincetown, Massachusetts
Lofting, Hugh	Lyme, Connecticut
Logan, M. A.	New York City
Loomis, Miriam M.	Boston
Lopas, Gene	North Wilmington, Massachusetts
Lopas, Grace	North Wilmington, Massachusetts
Lord, Mrs. J. A.	Danvers, Massachusetts

Lozinski, M.	Brooklyn, New York
MacKaye, Benton	Shirley, Massachusetts
MacKaye, Hazel	Shirley, Massachusetts
Mackenzie, Jean	Kenyon, New York City
McConnell, Elizabeth	New York City
McDowell, Mary E.	Chicago
McDowell, Pauline	Ocean Point, Maine
McLean, F. H.	Summit, New Jersey
McLeish, I.	Colorado Springs, Colorado
McLeish, Mrs. M. H.	Colorado Springs, Colorado
Maher, Amy	West Lebanon, New York
Makens, Adelaide	New York City
Manship, Grace	New York City
Marcus, Grace F.	New York City
Marelli, A.	Hampton, New Hampshire
Marelli, Maria	Hampton, New Hampshire
Marks, Jeannette	South Hadley, Massachusetts
Marming, J. E.	New York City
Marshall, Charles C.	New York City
Matchett, Clara	Allston, Massachusetts
Mead, Mrs. George H.	Chicago
Melish, Rev. John Howard	Brooklyn, New York
Mendel, Philip	Cambridge, Massachusetts
Merk, Frederick	Cambridge, Massachusetts
Meserole, Darwin J.	Brooklyn, New York

Meyer, Dr. Bernard	New York City
Miller, Agnes	Kingfield, Maine
Miller, Mr. and Mrs. C. S.	Westfield, New York
Miller, Jean W.	Kingfield, Maine
Millman, Bessie	Chicago
Mitchell, Broadus	Sweet Briar, Virginia
Moak, Harry	New York City
Moak, Rose	New York City
Moffet, Edna V.	Whitefield, New Hampshire
Montague, William Pepperell	New York City
Moore, Edward H.	Pequannock, New Jersey
Moore, Madeline N.	New York City
Moulton, Phyllis	New York City
Mullan, J. M.	Philadelphia
Mussey, Mabel Barrows	Wellesley, Massachusetts
Mussey, Henry R.	Wellesley, Massachusetts
Neill, J. G.	New York City
Nolen, John	Cambridge, Massachusetts
Norman, C. A.	Columbus, Ohio
Norris, S. B.	Colorado Springs, Colorado
Noyes, William	Leonias, New Jersey
Oleson, Lena	New York City
O'Neil, Irene Thomas	New York City
O'Neill, Neville	New York City

Ormsby, Kathleen
Otey, Mrs. Dexter
Ottman, F.

White Plains, New York
Lynchburg, Virginia
Brooklyn, New York

Packard, Fanny
Paine, Isabelle S.
Parsons, Louis B.
Passage, W. W.
Peabody, Anna May
Peabody, Helen
Peaslee, E. Isabel
Peaslee, Rachel A.
Peck, Mr. and Mrs. Joseph A.
Pholbrook, Alice
Plunkett, C. R.
Pohl, Dorothy
Pollitzer, Anita
Powell, Mary Lee
Powell, Thomas Reed
Prang, Mrs. Louis
Preston, Evelyn
Preston, Stuart D.
Price, Ida Wilcox
Price, W. T. R.
Putnam, Dr. C. R. L.

Cambridge, Massachusetts
Boston
New York City
Brooklyn, New York
Cambridge, Massachusetts
Cambridge, Massachusetts
Medford, Massachusetts
Medford, Massachusetts
Middlebury, Vermont
Hampton, New Hampshire
New York University
Chicago
Charleston, South Carolina
Cambridge, Massachusetts
Cambridge, Massachusetts
Rockport, Massachusetts
Red Bank, New Jersey
New York City
Scarborough, New York
Scarborough, New York
New York City

Raisman, Aaron	Brooklyn, New York
Raisman, Emma	Brooklyn, New York
Raisman, Victor	Brooklyn, New York
Ratner, Joseph	Columbia University
Raushenbush, Winifred	New York City
Read, Doris	Baltimore, Maryland
Read, Edith	Baltimore, Maryland
Read, Professor H. F.	Baltimore, Maryland
Renbox, Lisa	New York City
Robinson, Edith A.	Northport, New York
Robinson, Helen	New Haven, Connecticut
Rockheimer, Rita	Bridgton, Maine
Roewer, George E., Jr.	Boston
Rogers, Arthur K.	New Haven, Connecticut
Rogers, Helen W.	New Haven, Connecticut
Roghe, Hedwig	Brooklyn, New York
Roller, Anne	New York City
Rondinell, Annina C.	Whitefield, New Hampshire
Rosen, David	New York City
Ross, Mary	New York City
Rudenberg, R.	Brooklyn, New York
Saftel, Helen	Chestnut Hill, Massachusetts
Salinger, Dorothy	Boston
Sanford, Mary R.	Bennington, Vermont
Scheiber, Mr. and Mrs. I. B.	Peekskill, New York

Schenk, William	New York City
Schlesinger, Arthur M.	Cambridge, Massachusetts
Schrader, Franz	Bryn Mawr College
Schrader, Sallie H.	Bryn Mawr College
Schrufro, Mary	Bridgton, Maine
Schrufro, Samuel	Bridgton, Maine
Schultze, Mrs. Martin	Chicago
Scripture, Bertha	Lincoln, Massachusetts
Senken, B.	Brooklyn, New York
Sessions, Juliette	Williamstown, Massachusetts
Shearman, Margaret Hilles	South Byfield, Massachusetts
Shurtleff, Margaret Homer	Boston
Simkhovitch, Mary Kingsbury	New York City
Skillings, Franklin	Peak's Island, Maine
Smith, Carl E.	Hampton, New Hampshire
Smith, Eloise L.	Hampton, New Hampshire
Smith, Holmes	St. Louis, Missouri
Smith, Mary H.	Elizabethtown, New York
Smith, P.	Philadelphia
Smith, T. Max	Elizabethtown, New York
Solomon, Walter Leo	New York City
Sonneck, O. G.	New York City
Sosbroke, Hughell	Westport, Connecticut
Spencer, Niles	Provincetown, Massachusetts
Squier, Mrs. J. E.	Boston
Starr, Ellen Gates	Chicopee, Massachusetts

Stephens, Louise	New York City
Stern, Frances	Boston
Stevens, James G.	Canandaigua Depot, New York
Stites, S. H.	Wyoming, Pennsylvania
Stokes, I. N. Phelps	Greenwich, Connecticut
Straub, Mrs. Otto T.	Cambridge, Massachusetts
Sturtevant, A. H.	Carnegie Institution, Washington, D. C.
Swensen, Edgar	New York City
Talbot, Ellen B.	South Hadley, Massachusetts
Tannenbaum, Dora	Chicago
Tapley, Alice P.	Williamstown, Massachusetts
Tarbell, Ida M.	Trumbull, Connecticut
Tarbell, Sarah A.	Trumbull, Connecticut
Tarbell, W. W.	Trumbull, Connecticut
Tarbell, Mrs. W. W.	Trumbull, Connecticut
Tauber, Frederick	Melrose Highlands, Massachusetts
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Wolcott, G. S.	New York City

Woodhull, William

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Woodman, F. C.

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Woodward, W. E.

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Wright, Rowe

Woodstock, New York

Wyatt, Edith Franklin

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Zagler, Henrietta

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Zucker, Theodore F.

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BIBLIOGRAPHIC NOTE

The uncertainty in the minds of multitudes of men and women here and abroad as to the exercise of our American institutions of justice will make many of the fair-minded, whether conservative or liberal, eager to read or page through some of the outstanding reports, books, articles and editorials on the subject.

Among these should be listed: The Lowell and Fuller reports;^[19] Felix Frankfurter's, "The Case of Sacco and Vanzetti"; Eugene Lyon's, "The Life and Death of Sacco and Vanzetti"; John Dos Passos's, "Facing the Electric Chair"; "The Letters of Sacco and Vanzetti," edited by Marion Denman Frankfurter and Gardner Jackson; "America Arraigned," an anthology of poems by some fifty American poets, edited by Ralph Cheyney and Lucia Trent;^[20] in the *New Yorker Volkszeitung* from April to the end of August, 1927, will be found in German some unusual poems on Sacco and Vanzetti by Israel Kassvan; "There is Justice," by William Floyd; "Boston" by Upton Sinclair; "The Sacco-Vanzetti Case," Transcript of Records of the Case, Henry Holt and Company; and articles and editorials published in the Defense Committee's *Bulletins*, in the *Arbitrator*, *Atlantic Monthly*, *Nation*, *New Leader*, *New Republic*, *Outlook*, *The Relay*, *Springfield Republican*, and *The Survey*.

Finally when the Defense Committee has finished its editing of the compiled Sacco and Vanzetti papers, students of these issues will have an authoritative body of documents irreplaceable in the Defense literature. In the meantime both the *Decision of Gov. Alvan T. Fuller* and *The Lowell Committee Report* have been reprinted together and without comment by the Sacco-Vanzetti Defense Committee. This important reprint, or any one of the books listed in this note, may be obtained either from the Sacco-Vanzetti Defense Committee, P. O. Box 93, Hanover Street Station, Boston, Mass.; or from the Sacco-Vanzetti National League.

FOOTNOTES:

[19] Reprints of these reports, also reprints of Sacco-Vanzetti articles by John Dewey, Arthur Warner, William Thompson and Alexander Meiklejohn, may be obtained from the SACCO-VANZETTI NATIONAL LEAGUE, Room 2008, 104 Fifth Avenue, New York City. THE SACCO-VANZETTI NATIONAL LEAGUE is the permanent name of an association which was hastily formed in August, 1927, through the efforts of Mrs. Jessica Henderson, and others, to secure from the Department of Justice access to the files for material bearing on the case of the two men under sentence. The organization was not successful in this effort, but, under the chairmanship of Dr. Robert Morss Lovett, it continues to exist to keep the public informed of developments in the case, which it does not regard as closed. It has in hand now the preparation of a book on the Lowell Report, under the editorship of Professor Karl Llewellyn.

[20] The following are the names of the fifty poets included in this volume:

John Haynes Holmes, David P. Berenberg, Ralph Cheyney, Mary Carolyn Davies, S. A. DeWitt, W. Wilson Manross, Martin Feinstein, John Gould Fletcher, Louis Ginsberg, Carolyn Leonard Goodenough, Ernest Hartsock, Nicholas Moskowitz, Benjamin Musser, Lola Ridge, E. Merrill Root, Blanche Waltrip Rose, Mary Siegrist, Edith Lombard Squires, Lucia Trent, Robert Whitaker, Gremin Zorn, W. P. Trent, Seymore Michael Blankfort, Witter Bynner, Countee Cullen, Babette Deutsch, William Closson Emory, Harry Alan Potamkin, Ettore Rella, James Rorty, Clement Wood, Vincent G. Burns, Harold D. Carew, Miriam Allen DeFord, Arthur Davison Ficke, S. Ralph Harlow, Mary Plowden Kernan, Alfred Kreymborg, A. B. Magil, Jeannette Marks, Kathleen Millay, Edna St. Vincent Millay, William Ellery Leonard, Miriam E. Oatman, John Dos Passos, Alice N. Spicer, Laura Simmons, Max Press, Joseph T. Shipley, Henry Reich, Jr., Edwin Seaver, Josiah Titzell, Bethuel Matthew Webster, Jr., Alice Riggs Hunt.

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Transcriber's Notes

Possible printer's errors, including spelling, hyphenation, and punctuation, were retained, except for changes listed below.

Footnotes have been renumbered and moved to the end of their respective chapters.

On [page 21](#), "justice" was standardized to "justice's".

In the footnote on [page 22](#), "V." was italicized for standardization. It means vide, or see.

On [page 33](#), there is a poem with ellipsed text represented by a thought break. Thought breaks other than this are normal.

On [page 67](#), "mind ..." was changed to "mind...." for consistency.

In the [footnote on page 81](#), "v." was italicized for standardization.

On [page 83](#), "vew" was changed to "view".

On pages [88](#) and [90](#), "holdup" was standardized to "hold-up".

On [page 89](#), "Santosuossa" was changed to "Santosuosso" to match other sources from the period.

On [page 91](#), "felt" was changed to "fell" to match the passage on [page 49](#).

On [page 102](#), "Gospel." was changed to "Gospel," since the text is in the middle of a list.

In the [footnote on page 121](#), "Arthur Warner;" was changed to "Arthur Warner," to match the respective list formatting.

In [Appendix C](#), the line breaks and indentation of the list were standardized.

On [page 122](#), 2 erroneous colons in the list of works were replaced by semi-colons.

In the [Index](#), the following changes were made:

On [page 126](#), a comma was added after "Professor H. M." for consistency.

On [page 127](#), a comma was added after "(Milka Sablich)" for consistency.

On [page 128](#), "arrow flight" was standardized to "arrow-flight" to match the reference in the text.

On [page 128](#), a comma was added after "nephew of" for consistency.

On [page 129](#), "Lusk, Law," was standardized to "Lusk law," for consistency and to match the reference in the text.

On [page 130](#), "Holiday" was standardized to "holiday" to match the reference in the text.

On [page 131](#), "Santosoussa" was changed to "Santosuosso" to match the occurrence on [page 89](#).

On [page 132](#), a semi-colon was added to "lost sight of, 27" for consistency.

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